

# **JORDAN 2022 HUMAN RIGHTS REPORT**

## **EXECUTIVE SUMMARY**

The Hashemite Kingdom of Jordan is a constitutional monarchy ruled by King Abdullah II bin Hussein. The constitution grants the king ultimate executive and legislative authority. The multiparty parliament consists of a 130-member popularly elected House of Representatives (Majlis al-Nuwwab) and a Senate (Majlis al-Ayan) appointed by the king. Elections for the House of Representatives occur approximately every four years and last took place in November 2020. Local nongovernmental organizations reported some COVID-19-related disruptions during the election process but assessed voting was generally free and fair.

The Public Security Directorate has responsibility for law enforcement and reports to the Ministry of Interior. The Public Security Directorate and the General Intelligence Directorate share responsibility for maintaining internal security. The General Intelligence Directorate reports directly to the king. The armed forces report administratively to the minister of defense and have a support role for internal security. There is no separate Ministry of Defense; the prime minister also serves as defense minister. Civilian authorities maintained effective control over the security forces. There were credible reports that members of the security forces committed some abuses.

Significant human rights issues included credible reports of: torture and other cruel, inhuman, and degrading treatment or punishment by government authorities; arbitrary arrest and detention; political prisoners or detainees; arbitrary or unlawful interference with privacy; serious restrictions on freedom of expression and media, including harassment and intimidation of journalists, unjustified arrests or prosecutions of journalists, censorship, and enforcement of and threat to enforce criminal libel laws; serious restrictions on internet freedom; substantial interference with the freedom of peaceful assembly and freedom of association, including overly restrictive laws on the organization, funding, or operation of nongovernmental organizations and civil society organizations; inability of citizens to elect their executive branch of government or upper house of parliament; lack of

investigation of and accountability for gender-based violence, including but not limited to domestic or intimate partner violence, sexual violence, and other harmful practices; violence or threats of violence targeting lesbian, gay, bisexual, transgender, queer, or intersex persons; and significant restrictions on workers' freedom of association, including threats against labor activists.

The government took some steps to investigate, prosecute, and punish officials who committed human rights abuses; however, government impunity for such abuses remained widespread. Information on the outcomes of these actions was not publicly available for all cases. The government took steps to identify, investigate, prosecute, and punish officials engaged in public corruption. Limited transparency during investigations and trials contributed to popular perceptions of impunity.

## **Section 1. Respect for the Integrity of the Person**

### **a. Arbitrary Deprivation of Life and Other Unlawful or Politically Motivated Killings**

There were no reports that the government or its agents committed arbitrary or unlawful killings. There was one death in custody with credible allegations it was caused by torture and developments regarding custodial death cases from previous years.

On September 6, Zaid Dabash died in Marka prison. Family members and many commentators alleged Public Security Directorate (PSD) officers tortured Dabash to death, following his September 3 detention for "assaulting a juvenile." Photos and a video reportedly depicting Dabash's bruised corpse circulated on Twitter and some independent media outlets days after his death. The PSD initiated an investigation and notified the East Amman Prosecutor and PSD judiciary. Officials at Marka prison also informed the quasi-governmental watchdog National Center for Human Rights (NCHR), which sent an investigation team to assess the case. According to NCHR, PSD provided it unhindered access to the prison and allowed its investigators to select and interview private witnesses, prison officials, and medical professionals.

A press report alleged government officials had claimed Dabash suffered from delusions and attempted to escape detainment, whereafter officers used force to stop him. The East Amman Prosecutor ordered a forensic autopsy led by a panel of three doctors, which reportedly confirmed internal and external bruising and found several injuries on Dabash's corpse. Dabash's family raised concerns after the autopsy determined Dabash's death was not attributed to the injuries observed. Before Dabash's September 12 burial, the PSD agreed to the family's request for a second autopsy by five doctors the family handpicked. In an interview reported by the press, the lawyer of Dabash's family alleged the second autopsy results "proved" torture caused Dabash's death. On December 7, a local news outlet reported eight officers had been charged with crimes related to torture and harm that resulted in Dabash's death. Through December, the PSD had not released an official statement regarding the charges against the officers.

Through year's end, there was no indication authorities had investigated or pursued accountability related to the August 2021 death of an unnamed detainee who died in an Irbid hospital. NGOs expressed concern there was insufficient information publicly available to rule out arbitrary or unlawful deprivation of life by security forces. There was also no indication authorities had investigated or pursued accountability related to the August 2021 reported suicide of an individual held by security services. Family members alleged the individual had been killed in custody. The case of three medical examiners referred to the Zarqa felony magistrate court in 2019 in connection with the 2018 death of Bilal Emoush, allegedly from torture following his arrest by the PSD, remained pending with the Ministry of Justice through year's end.

Police officers are tried in police courts when facing either criminal penalties or administrative punishment. NCHR and NGOs continued their calls for police officers accused of violations of human rights to be tried in independent civil courts instead of police courts, which fall under the Ministry of Interior and are considered less independent, according to many NGOs. NGOs frequently complained they were unable to access information on the results of cases.

## **b. Disappearance**

There were no known reports of disappearances by or on behalf of government

authorities.

### **c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment, and Other Related Abuses**

The constitution prohibits torture, including psychological harm amounting to torture, by public officials, and the penal code provides penalties up to three years' imprisonment for its use, with a penalty of up to 15 years if serious injury occurs. There were credible reports by international and local NGOs that government officials employed torture and other mistreatment in police and security detention centers. Human rights lawyers found the penal code ambiguous and supported amendments to define "torture" more clearly and strengthen sentencing guidelines. According to government officials, all reported allegations of abuse in custody were thoroughly investigated, but human rights NGOs questioned the impartiality and comprehensive nature of these investigations. Officials on trial for torture and mistreatment were most often convicted on charges of excessive use of force rather than torture.

There were complaints of mistreatment by the General Intelligence Directorate (GID) and the PSD during the year. Local NGOs alleged torture in detention facilities continued, but citizens did not report it for fear of reprisals by the government. Authorities restricted access to information regarding the results of investigations and prosecutions of torture or mistreatment cases. Local NGOs reported widespread police mistreatment of detainees, including cursing at and slapping suspects to extract confessions.

The PSD Human Rights and Transparency Office reported receiving 95 complaints with allegations of harm (a lesser charge than torture that does not require proof of intent) against officers for the 12-month period ending in September; 36 of these complaints were referred to the courts. Most alleged abuse occurred in pretrial detention. For the same period, the Human Rights and Transparency Office reported receiving 29 allegations of mistreatment in prisons and rehabilitation centers, compared with only 12 in the previous 12-month period. As of October, 11 cases resulted in a conviction, and 18 did not go to trial due to insufficient evidence.

Independent news outlets reported that political activist Kamil al-Zoubi appeared in court November 29 with visible marks of torture on his wrists, according to his lawyer. Authorities detained al-Zoubi October 30 in Ramtha, which NGO groups alleged was in reprisal for his having advocated for the release of political detainees and sharing information disclosed by the detainees' lawyers about their situation. He was released on bail November 29.

According to an NGO, male guardians occasionally requested virginity testing for female relatives detained by authorities for being "absent from the home." By law medical professionals cannot perform virginity testing on a woman without her consent; however, women and girls reportedly often felt pressured to undergo the test to avoid attracting suspicion from family members. NGOs continued to urge authorities to ban the use of virginity testing requests, arguing these tests violate women's rights and are a form of cruel, inhuman, or degrading treatment (see section 6).

### **Prison and Detention Center Conditions**

Conditions in the country's 17 prisons varied: old facilities had poor conditions while new prisons met international standards. Authorities held foreigners without legal employment or residency permits in the same facilities as citizens. (For information on asylum seekers and refugees, see section 2.e.).

**Physical Conditions:** International NGOs and legal aid organizations identified problems including overcrowding, limited health care, inadequate legal assistance for inmates, and limited social care for inmates and their families.

The PSD continued to monitor detention facilities and to promote compliance with detention policies and used electronic records to log every case and detainee in all detention centers.

Officials reported overcrowding at some prisons, especially those in and around Amman. According to the PSD, 81,331 inmates were released from October 2021 through September to ease overcrowding.

According to the PSD, authorities designated some facilities to hold only pretrial detainees. The GID held some persons detained on national security charges in a

separate detention facility. Detainees complained of solitary confinement, isolation, and prolonged pretrial detentions of up to six months. Local NGOs received reports of torture and other mistreatment and abuse in government detention facilities.

Although basic medical care was available in all correctional facilities, medical staff complained that correctional facilities throughout the country lacked adequate medical facilities, supplies, and staff. Most facilities were unable to conduct blood tests and had limited X-ray capabilities, forcing doctors to rely largely on self-reporting by patients for certain conditions.

Conditions in women's prisons were generally better than conditions in most men's prisons; however, women's prisons still faced problems such as overcrowding. The capacity of the Juweideh detention center was 450 female detainees; 623 women were detained there as of September, according to the PSD. Detainees had appropriate access to the basic necessities of food, potable water, sanitation, heating, ventilation, lighting, and medical care. Prison authorities maintained and generally enforced set hours for indoor and outdoor breaks, chores, library visits, and vocational training.

Some police stations had separate holding areas for juvenile detainees, and authorities generally detained juveniles in specialized juvenile facilities supervised by the Ministry of Social Development.

**Administration:** The Ministry of Justice exercised oversight regarding the condition of detainees and was authorized to conduct investigations into allegations of human rights abuses. The Ministry did not report receiving any complaints regarding mistreatment. From October 2021 to September, the PSD Human Rights and Transparency Office made 567 visits to detention centers accompanied by observers from both local and international organizations. In some cases, authorities severely restricted detainees' access to visitors.

Authorities sometimes did not inform families regarding the whereabouts of detainees or delayed that notification between 24 hours and several days. Although the PSD had a system of electronic recordkeeping to address this problem, NGOs reported families did not always know the whereabouts of their

detained family members. NGOs reported some instances of authorities denying and restricting contact with and visitations by family members.

**Independent Monitoring:** The government permitted some local and international human rights observers and lawyers to visit prisons and conduct private interviews. The International Committee of the Red Cross (ICRC) had wide access to visit prisoners and detainees in all prisons, including facilities operated by the GID. During the year, the ICRC made five scheduled visits to the GID facility, and the NCHR conducted one unscheduled visit there. Authorities approved some requests by local human rights observers to conduct announced monitoring visits independently of Karamah (a team of government officials and NGOs) and the NCHR. Independent inspectors conducted five visits throughout the year. Karamah and the NCHR also monitored prison conditions, with the NCHR conducting approximately 20 prison visits throughout the year.

**Improvements:** According to the PSD, it created new courtrooms and reported renovations in nine prison facilities this year to improve sanitary facilities, medical clinics, access to water, ventilation, and heating systems, and equipped facilities with fire-safety equipment, outdoor lighting systems, and small-scale supermarkets for detainees. Authorities took steps to construct additional wings and floors in existing centers to fix infrastructure and accommodate additional detainees.

The PSD rehabilitated the health units in the Tafilah and Aqaba prisons. The PSD's memorandum of understanding with the Ministry of Health and the ICRC to update the health units in the Swaqa and Juweideh detention centers includes a referral system to transfer patients to outside medical facilities if an inmate's condition requires treatment not available at the prison clinic.

The PSD and the Ministry of Justice expanded their distanced court hearings program, building an additional 17 video conference rooms in detention centers to raise the total to 35. As of October, more than 45,000 detainees had attended court hearings via video conference calls. Authorities also took steps to use alternatives to prison sentences for nonviolent offenders. Judges sentenced 1,400 first-time offenders to community service in lieu of prison time from January through October.

Since August the judiciary issued 30 sentences of supervised house arrest with electronic monitoring bracelets under a new initiative for alternative sentences. Through September, approximately 432 cases in Amman and 154 cases in Irbid received other alternatives to detention, such as travel bans.

#### **d. Arbitrary Arrest or Detention**

The law prohibits arbitrary arrest and detention and provides for the right of any person to challenge the lawfulness of his or her arrest or detention in court; however, the government did not always observe these prohibitions.

#### **Arrest Procedures and Treatment of Detainees**

The law provides a person in custody with the right to appear promptly before a judge or other judicial officer for a judicial determination of the legality of the detention. The law allows authorities to detain suspects for up to 24 hours without a warrant in all cases. It requires that police notify judicial authorities within 24 hours of an arrest and that authorities file formal charges within 15 days of an arrest. Authorities can extend the period to file formal charges for a maximum of six months for a felony and two months for a misdemeanor. According to local NGOs, prosecutors routinely requested extensions, which judges granted. The State Security Court (SSC) can authorize the Judicial Police (part of the PSD) to arrest and keep persons in custody for seven days prior to notification of detention while conducting criminal investigations. This authority includes arrests for alleged misdemeanors. NGOs alleged that authorities transferred suspects to the SSC to extend the legal time from 24 hours to seven days for investigation prior to notification. NGOs also alleged that authorities transferred suspects from one police station to another to extend the investigation period. The Ministry of Justice operated an electronic notification system for judicial action to help lawyers remain up to date on their cases and reduce the length of pretrial detention.

The penal code allows bail, and authorities used it in some cases. In many instances the accused remained in detention without bail during legal proceedings. Judicial regulations exempt persons from pretrial detention if they have no criminal record and the crime is not a felony. The government generally upheld these exemptions. However, authorities often replaced pretrial detentions with



administrative detentions. NGOs also reported cases of arbitrary administrative detention during the year. Many detainees reported not having timely access to a lawyer of their choice, despite the law's guarantee of access to legal counsel upon referral to public prosecutors. Courts appointed lawyers to represent indigent defendants charged with felonies carrying possible life sentences (often interpreted by the judiciary as 20 years) or the death penalty, although for lesser crimes legal aid services remained minimal.

At times authorities held suspects incommunicado for up to one week or placed them under house arrest. Several human rights activists alleged that authorities held arrestees incommunicado to hide evidence of physical abuse by security forces. Courts did not always offer adequate interpreter services for defendants who could not speak Arabic.

**Arbitrary Arrest:** The law requires that authorities inform individuals of charges upon arrest. In cases purportedly involving state security, however, security forces at times arrested and detained individuals without informing them of the charges against them and either did not allow defendants to meet with their lawyers or did not permit meetings until shortly before trial.

Security services detained political activists for shouting slogans critical of authorities during protests. Some activists were allegedly arbitrarily arrested and held without charge; others were charged with insulting the king, undermining the political regime, or slander. Most detentions lasted for days, but some lasted several months. Several detainees held hunger strikes from January through October to protest their arrest and arbitrary detention. The number and lengths of hunger strikes increased from prior years. Throughout the year 545 individuals were detained for violating public health and security measures enacted by the Prime Ministry in response to the COVID-19 pandemic. This was a 7.5 percent decrease from 2021, according to the PSD.

In a September report, Human Rights Watch (HRW) documented 10 cases in which the GID and the Preventive Security branch of the PSD arbitrarily detained activists between 2018 and 2021. HRW reported that in only five of the cases, arresting officers identified themselves as belonging to one of these agencies. In eight of the cases, HRW reported that large numbers of police, including

plainclothes police, either raided the activists' homes or arrested them on the street. The report stated that in three cases, arrested activists were held in solitary confinement at the General Intelligence headquarters in Amman, with limited or no light, and irregular or no visits, from families and lawyers.

Security services reportedly arbitrarily arrested, intimidated, and harassed lesbian, gay, bisexual, transgender, queer, and intersex (LGBTQI+) individuals (see section 6). The government arbitrarily detained at least 15 LGBTQI+ individuals during the year.

The Crime Prevention Law empowers provincial governors to detain individuals administratively without charge or trial as they deem necessary for investigation purposes or to protect the individual; governors also may set bail amounts. Provincial authorities reportedly held some individuals in prison or under house arrest without due process and often despite a finding of not guilty in legal proceedings. According to NGOs some governors abused their detention power to bypass the criminal justice system, intimidate political activists and individuals, imprison individuals without sufficient evidence, prolong the detentions of prisoners whose sentences had been completed, or set excessive bail. According to HRW, provincial authorities used the Crime Prevention Law to arbitrarily arrest over 160 political activists or protesters in February and March alone.

According to the Ministry of Interior, from January through September approximately 29,000 persons were held under administrative detention without charge or trial, at least temporarily, an increase from 2021.

According to local and international NGOs, authorities routinely engaged in involuntary "protective" detention of women (a type of informal detention without trial) to deal with cases ranging from sex outside of marriage to absence from home to being the victim of sexual violence, all of which could put women at risk of so-called "honor crimes." NGOs reported that a few women were administratively detained at Juweideh Prison for "absence" from home without permission of a male guardian, or for having sex outside of marriage. Juweideh Correctional Center held 623 women as of September. During the 12-month period ending in September, 542 women were detained administratively (see section 6). Some detained women told a local NGO that self-defense from

domestic violence and economic exploitation led to their detention. Most detained women were kept in prison for several weeks due to a determination by authorities that a family member must provide a guarantee to protect them from attack prior to their release.

Since 2018, government authorities have referred women at risk of gender-based violence and “honor crimes” to the Ministry of Social Development shelter. The women at risk can choose to stay at or leave the shelter after being briefed about the risks of gender-based violence and “honor crimes” and being offered comprehensive services by the shelter’s management. For most women who chose to leave the shelter, local NGOs offered alternative solutions to avoid further risks of harm or detention.

According to the Ministry of Social Development, approximately 132 women had been voluntarily transferred to its shelter during the 12-month period ending in September, with an average stay of five to six months. Since the shelter opened in 2018, the Ministry of Social Development referred 414 women to it.

During the year, local NGOs said that officials detained some foreign laborers; those whose employers did not secure their release were held for working without authorization, being absent from their authorized workplace, or lacking proper residency permits. Most foreign workers were exempted from paying fines for overstaying their visas and subsequently were repatriated if they chose to return to their home country, while others who chose to stay found sponsors who in turn paid part of the nonexempted fines. According to the Ministry of Interior, as of October, 1,417 foreigners were administratively detained, an increase of almost five times over the previous year.

**Pretrial Detention:** The law criminalizes detaining any person for more than 24 hours without a prosecutor’s authorization, although rights activists said authorities routinely ignored this limit and that impunity was very common. Governors continued to issue thousands of administrative detention orders under a law allowing pretrial detention from three days to one year without charge or trial or any means of legal remedy. NGOs reported pretrial detentions extend further than one year in some cases.

Authorities continued to subject individuals to prolonged pretrial detention (in some cases without charges), solitary confinement, and mistreatment, according to the NCHR and other organizations. Legal experts noted administrative detentions under the Crimes Prevention Law and limited access to defense counsel for misdemeanor and minor felonies contributed to prolonged pretrial detainments. In some cases, the length of pretrial detention equaled or exceeded the maximum sentence for the alleged crime. When police had doubts about the innocence of a suspect, governors reportedly used administrative detentions to re-arrest individuals who had been released by prosecutors from custody. This was especially common with crimes involving drugs or cases involving LGBTQI+ individuals. According to NGOs, pretrial detainees were occasionally placed with convicted individuals.

The law does not have an explicit provision that entitles victims of arbitrary or unlawful detention to restitution. The law does not provide for routine judicial review of administrative detentions ordered by governors. Detainees can bring civil lawsuits for restitution for arbitrary or unlawful detention or bring criminal lawsuits for illegal incarceration; however, the legal community reported such lawsuits seldom occurred. Detainees must hire a lawyer with at least five years' experience, must pay their own fees, which varies from five Jordanian dinars (\$7) to over 300 (\$424), and must present a copy of the order of detention. There was one case of restitution for a foreign worker during the year. As of October, the case remained pending at the Court of Cassation.

## **e. Denial of Fair Public Trial**

The constitution and law provide for an independent judiciary, and the government generally respected judicial independence and impartiality. Criminal prosecutors report to the Judicial Council, while the Ministry of Justice provides courts with administrative support.

### **Trial Procedures**

The law provides for the right to a fair and public trial, and the judiciary generally enforced this right. The law presumes that defendants are innocent. Officials sometimes did not respect the right of defendants to be informed promptly and in

detail of the charges against them, to communicate with an attorney of their choice, or to a fair and public trial without undue delay. According to the law, all civilian court trials and SSC trials are open to the public unless the court determines that the trial should be closed to protect the public interest.

Authorities occasionally tried defendants in absentia. The law allows this practice but requires a retrial when the accused returns to the country. Jordan's public defender system only guarantees support to those facing felonies with potential lifetime sentences or the death penalty. However, the SSC provides a defender for felonies with potential sentences of over 10 years or the death penalty. In general, if charges amount to less than 10 years of imprisonment, a defendant can apply for an attorney, but there is no guarantee that one will be provided, and many detainees reported not having timely access to legal counsel. The Ministry of Justice established a committee to investigate the eligibility criteria and challenges facing legal aid programs. Access to legal aid remained limited, especially for women in rural areas. Most criminal defendants lacked legal representation prior to and at trial. A legal aid nonprofit said 70 percent of individuals appear before the judiciary without legal representation. Frequently, defendants before the SSC met with their attorneys only one or two days before their trial began.

The PSD and the Jordanian Bar Association have a memorandum of understanding allowing lawyers access to all detention centers and prison facilities and permitting private meetings with their clients in dedicated rooms. The government generally permitted such access. To respond to complaints that authorities did not uniformly provide foreign residents, especially foreign workers, with free translation and defense, the Ministry of Justice established a directorate in 2021 to hire additional interpreters, although the system did not provide uniform access during the year. Criminal defendants generally received access to interpretation free of charge. The Ministry of Justice, in collaboration with the Jordanian Bar Association and a human rights NGO, maintained a designated unit to provide legal aid services to witnesses and defendants, as mandated by law. Through September, 926 individuals received legal aid through this program. The PSD received 650 requests for legal aid from inmates, of which 66 were approved. In October, the Ministry of Justice expanded eligibility for legal aid services.

Defendants may present witnesses and evidence and may cross-examine witnesses

testifying against them. Defendants do not have the right to refuse to testify. Although the constitution prohibits the use of confessions extracted by torture, human rights activists noted that courts routinely accepted confessions allegedly extracted under torture or mistreatment. The SSC occasionally declined to hear testimony from witnesses they considered added no value to cases, and the law grants judges the discretion to do the same.

Court verdicts are announced in open hearings. Defendants can appeal verdicts, and appeals are automatic for cases involving the death penalty or a sentence of more than 10 years' imprisonment. Per the law, when defendants at trial recant confessions obtained during the criminal investigation, those confessions should not be used against the defendant; the trial should then rely solely on the evidence collected and presented at trial.

The SSC is designed to handle sensitive national security, terrorism, narcotics, and counterfeiting cases and consists of military and civilian judges appointed by the prime minister. It is standard procedure to record all hearings. During investigations and trials via the SSC this year, defendants reportedly had access to an attorney if the defendant faced felony charges and sentencing for 10 or more years. However, legal experts noted the state did not provide public defenders to SSC suspects. The SSC estimated that 90 percent of trials were for drug offenses as of September. The SSC conducted video teleconference (VTC) hearings occasionally for health, security, and cost-saving reasons. All SSC court verdicts are automatically appealed to the country's highest court, the civilian Court of Cassation, which has the authority to review matters of both fact and law. NGOs and activists argued the government should stop trying civilians, including activists, before the SSC given its quasi-military character, contending that such a step would strengthen the independence of the civilian judicial system.

The government usually allowed international observers to visit the SSC and the military and police courts to observe court proceedings. During the year, a local CSO conducted a training and certification program for all SSC judges and prosecutors on youth justice issues.

Civil, criminal, and commercial courts accord equal weight to the testimony of men and women. In Sharia courts, which have civil jurisdiction over Muslim

marriage, divorce, and inheritance cases, the testimony of one man equals that of two women, with certain exceptions. As a response to local and international human rights recommendations, the Sharia Judicial Institute continued to provide human rights training sessions for all its judges and prosecutors, including a session in March on protecting the family from domestic violence. As of January, in-person sessions returned after instituting online sessions during pandemic.

The law places the age of criminal responsibility at 12 years and stipulates juveniles charged with committing a crime along with an adult be tried in a juvenile court. However, the SSC has jurisdiction over juvenile narcotics cases and follows the Juvenile Law for procedures and penalties. Parents and guardians of the defendants, Ministry of Social Development social workers, and defense attorneys may attend juvenile hearings. The law stipulates alternative penalties for juvenile offenders, including vocational training and community service.

In August the Judicial Council and Ministry of Justice launched the 2022-2026 Justice Sector Strategy to improve services and access to justice by focusing on rule of law, specialization of courts and judges, automation, judicial independence, gender mainstreaming, and human rights protections.

### **Political Prisoners and Detainees**

There were at least 200 individuals detained and imprisoned by the government for political reasons, including criticizing the government, its foreign policy, government officials and official bodies, or foreign countries, and chanting slogans or writing online posts against the king. In addition to those charges, other charges commonly brought against persons critical of the government included insulting the king, undermining the political regime, harming relations with a foreign country, or violating the cybercrime law, antiterrorism law, crime prevention law, and other provisions under the penal code such as initiating incitement or slander. In a September report, HRW asserted that such practices amounted to a systematic campaign to quell peaceful opposition and silence critical voices. Some individuals reported facing legal difficulties for any kind of online political commentary. Citizens and NGOs alleged the government used administrative detention for what appeared to be political reasons.

Political prisoners were generally given the same protections as other detainees and were not subject to significantly different prison conditions than the general population. However, authorities often denied *hirak* (reform movement) activists bail several times before eventual approval. The government generally permitted access to such prisoners by human rights organizations and the quasi-governmental NCHR.

On February 8, security services arrested political activist Ali Ma'esh al-Damani in Ma'an governorate. Authorities held Damani in Marka prison under charges of "harming relations with a friendly State" for publishing a social media post criticizing Arab-Israeli normalization. He faces a prison sentence of up to five years. Damani's family filed a complaint with the NCHR about excessive use of force as authorities used tear gas and fired weapons during his arrest. In April, the SSC rejected Damani's bail request. On July 26, Damani was released on bail following a 40-day hunger strike. In October, the SSC reported Damani's case had been dismissed.

**Threats, Harassment, Surveillance, and Coercion:** Some exiled activists and political commentators alleged that security services harassed and intimidated their Jordan-based family members to pressure them to end their activism abroad. An article published by *Middle East Eye* in September reported several young Jordanian political activists were subjected to pressure from security services, including harassment, when attempting employment or travel related activities.

### **Civil Judicial Procedures and Remedies**

Individuals may bring civil lawsuits related to human rights abuses through domestic courts, which were considered sufficiently independent to provide effective civil remedies for human rights abuses. The government generally complied with court decisions pertaining to human rights. Individuals and organizations may appeal adverse domestic decisions to the quasi-governmental NCHR.

### **f. Arbitrary or Unlawful Interference with Privacy, Family, Home,**



## or Correspondence

The constitution protects the right to privacy but allows for surveillance “by a judicial order in accordance with the provisions of the law.” The law permits the prosecutor general to order surveillance upon receiving “reliable information” that “a person or group of persons is connected to any terrorist activity.” Although the law prohibits it, individuals widely believed that security officers monitored telephone conversations and internet communication, read private correspondence, and engaged in surveillance including monitoring online comments by cataloging them by date, internet protocol (IP) address, and location without court orders. Virtual private networks (VPN) sometimes were inaccessible due to government interference.

The phones of nearly 200 Jordanian activists, journalists, politicians, and government officials were targeted by Pegasus spyware, according to a February report by local press. In April, NGO Front Line Defenders and research organization Citizen Lab reported uncovering Pegasus spyware on the phones of four local activists (see section 5). The report alleged the government was behind the spyware, based on a digital forensic investigation. According to Front Line Defenders, at least two government agencies appear to be using Pegasus spyware since at least late 2018.

Some tribes continued to employ the custom of *jalwa*, where the relatives of a person accused of homicide are displaced to a different geographic area pending resolution between the involved families to prevent further bloodshed and revenge killings. Even though *jalwa* and tribal laws were abolished from the legal system in 1976, security officials sporadically continued to facilitate banishment and other tribal dispute resolution customs. In May, local news outlets reported 4,244 individuals displaced by *jalwa* had returned to their homes after a September 2021 agreement between the Ministry of Interior and tribal sheikhs. In September, a family was forced to move to another geographic area due to a murder between two tribes. As of September, the Ministry of Interior indicated there were 47 cases of *jalwa*.

## **Section 2. Respect for Civil Liberties**

### **a. Freedom of Expression, Including for Members of the Press and Other Media**

The constitution provides, “the State shall guarantee freedom of opinion; and every Jordanian shall freely express his opinion by speech, writing, photography, and the other means of expression, provided that he does not go beyond the limits of the law.” Authorities frequently applied regulations to limit freedom of expression, including for members of the press and other media, and used the antiterrorism law, cybercrimes law, press and publications law, and penal code to arrest local journalists, activists, perceived dissidents, and others expressing political views.

**Freedom of Expression:** The law permits punishment of up to three years’ imprisonment for insulting the king, slandering the government or foreign leaders, offending religious beliefs, or fomenting sectarian strife and sedition. The government restricted the ability of individuals to criticize the government by arresting several activists for political expression. Authorities used laws against slander of public officials, blackmail, and libel to restrict public discussion, as well as employed official gag orders issued by the public prosecutor.

On August 15, seven unidentified men, including two in military uniform, arrested journalist Adnan al-Rousan under the cybercrimes law for publishing an article on Facebook deemed “offensive to the national approach and fabric and insults the cohesion of Jordanian society and state institutions,” and for “insulting Jordan,” according to the Committee to Protect Journalists (CPJ). Al-Rousan’s article criticized the king and former government officials, and alleged the country faced the absence of justice, unequal wealth distribution, corruption, and the theft of homeland assets. On September 13, Rousan was released on bail. He has denied the charges but was sentenced in October to three months imprisonment minus time-served, and subject to appeal.

On December 5, security forces stormed the house of political and trade union activist, Dr. Sufian al-Tall, and arbitrarily arrested him and activists Abdul Khalifa Tawahiya and Omar Abu Rasa while they were filming a video to broadcast on television, according to local media. Al-Tall's family alleged security forces used

force against them and confiscated their phones when the activists tried to document the arrests. The three activists were charged with undermining the regime and inciting sedition. On December 8, al-Tall was released on bail, but bail requests for Tawahiya and Abu Rasa were denied, according to local media. They remained in detention through the end of December.

All publications must obtain licenses from the government to operate. There were many daily newspapers, and observers considered several to be independent of the government, including *al-Sabeel*, regarded as close to the Islamic Action Front (the Jordanian Muslim Brotherhood's legally registered political party).

Observers also judged several daily newspapers to be close to the government.

The independent print and broadcast media operated with severe restrictions. Media observers and NGOs reported consistent government pressure on members of the press and other media, including the threat of large fines and prison sentences, to refrain from criticizing the royal family, discussing the GID, covering ongoing security operations, or "slandering" government officials. The government influenced news reporting and commentary through political pressure on editors and control over important editorial positions in government-affiliated media. Journalists of government-affiliated and independent media reported that security officials used bribes, threats, and political pressure to force editors to place articles favorable to the government in online and print newspapers. The Press Syndicate is legally independent from the government; however, some members alleged government interference in its activities.

Local and foreign journalists operating in the country continued to experience increased restrictions on their reporting in the form of gag orders, harassment by security forces, and withholding of permits to report.

The law grants authority to the head of the Media Commission to close any unlicensed theater, satellite channel, or radio channel. The commission continued granting broadcasting licenses to companies owned by citizens and foreigners. Those with licenses may not legally broadcast anything that would harm public order, social security, national security, or the country's relations with a foreign country; incite hatred, terrorism, or violent sedition; or mislead or deceive the

public. The commission must justify the reasons for rejecting a license and allow the applicant to appeal the decision to the judiciary. There is a fine for broadcasting without a license.

By law any book can be published and distributed freely. Nonetheless, if the Media Commission deems that passages violate public norms and values, are religiously offensive, or are “insulting” to the king, it can request a court order to prohibit the distribution of the book. The commission reviewed 411 books and banned the distribution of 53 for religious and moral reasons, including sexual content or promotion of violence and extremism, as of November.

The Media Commission expanded its e-platform to locally based film importers to request permission for distributing or screening foreign films.

The government has a majority of seats on the board of the leading semi-official daily newspaper, *al-Rai*, and a share of board seats for the *ad-Dustour* daily newspaper. According to press freedom advocates, the GID’s Media Department must approve editors in chief of pro-government newspapers.

Media observers noted that when covering controversial subjects, the government-owned Jordan Television, Jordan News Agency, and Radio Jordan reported only the government’s position.

The Ministry of Trade and Industry licenses all public opinion polls and survey research centers.

**Violence and Harassment:** The government subjected journalists to harassment and intimidation due to their reporting. Media professionals were less likely to cover sensitive topics due to fear of arrest, which significantly reduced the quality of journalism. Through October, the Center for Defending the Freedom of Journalists (CDFJ), a local NGO, documented 15 violations against journalists and reported a decline in media freedom attributed primarily to the application of censorship and self-censorship. In March, airport police detained two journalists on arrival due to cybercrimes lawsuits filed by private citizens, and in the same month, police detained a political satirist for a tweeting a joke aimed at security services.

According to the CDFJ, abuses against journalists were generally characterized as minor. Abuses that the CDFJ characterized as grave (such as physical attacks committed by government authorities) tended to occur when journalists attempt to cover protests. Some political commentators attributed this phenomenon to the lack of policies regulating law enforcement's interactions with civilians during crises. The CDFJ attributed the decline in specific cases of violations to the government's denial of access to journalists, as well as self-censorship.

Authorities arrested or temporarily detained some journalists, and government officials or private individuals threatened some journalists.

For several months, the GID intimidated Syria Direct, an Amman-based media organization made up of Syrian refugees, and forced the organization to close in August, according to a United Kingdom-based news outlet.

In September the Jordan Times reported on a recent survey conducted by the "Salamat" program for digital safety which revealed that almost 55 percent of female journalists in the country have experienced digital violence at some point in their careers. Lina Momani, Salamat national coordinator said, "online harassment of female journalists in Jordan occurs in various forms, such as hateful messages, privacy violations and doxxing." According to Salamat, online violence was devastating for individuals' mental health and sense of personal and family safety, and the fear it instills can lead women journalists to limit themselves and self-censor.

**Censorship or Content Restrictions for Members of the Press and Other Media, Including Online Media:** The government directly and indirectly censored the media and online activists, reducing the variety of information available on the internet. The government's efforts to influence journalists, including withholding financial support, scholarships for relatives, and special invitations, led to significant control and censorship of media content.

A survey by CDFJ found 93 percent of sampled journalists reported practicing self-censorship due to fear of arrest and prosecution by government authorities. As such, journalists avoided reporting on certain topics, including political opposition based abroad and the LGBTQI+ community. CDFJ's 2021 Media Freedom Index

in Jordan issued in May said Jordan's media freedoms were "shackled." Jordan's media environment was "restricted" in five categories (a slight downgrade from the year prior), including the political environment, rights to access information, violations, and impunity (related to media regulations and publication prohibitions), media independence, and the freedom of expression and online press. Only Jordan's legislative environment scored "partially restricted," according to the index. Some 77 percent of journalists surveyed reported being questioned or contacted by security service officers during the prior year. CDFJ found that no media in Jordan was independent of the government, with increased instances of self-censorship, gag orders on the press, lack of government transparency, and hacking attempts against journalists and civil society.

Editors reportedly received telephone calls from security officials instructing them on how to cover events or to refrain from covering certain topics or events, especially criticism of political reform. At times editors in chief censored articles to prevent lawsuits. Bribery of journalists took place and undermined independent reporting. Journalists cited the weak financial condition of media outlets, the threat of detention and imprisonment for defamation for a variety of offenses, and court-ordered fines of as much as 150,000 Jordanian dinars (\$210,000) as factors influencing media content.

During the year the Media Commission circulated official gag orders restricting discussion in all media, including social media. Gag orders are often used in politically or socially sensitive cases that have caught public attention. Public prosecutors can issue these orders under the pretext of not "affecting the course of justice" or disclosing investigation information.

In June Amman prosecutors issued a press gag order while authorities investigated the killing of a female university student on the campus of the University of Applied Science. The murder sparked public condemnation of gender-based violence and calls for the killer to face the death penalty (see section 6).

In August Zarqa prosecutors issued a gag order on the case of a medical error at Zarqa Governmental Hospital that resulted in a patient losing both kidneys.

In September Amman prosecutors issued two separate gag orders, the first on a

family murder involving a prosecutor, and the second on leaked audios involving a former PSD Director. In December an Irbid public prosecutor issued a gag order on the case of a girl charged with murdering three members of her family and injuring her mother in a shooting.

For grand felony cases or cases of domestic violence, the public prosecutor may issue a gag order to protect the victims or witnesses involved. The Media Commission bans publication of any reports concerning the armed forces outside of statements made by the armed forces' spokesperson.

The government censored films and television series based on perceived "violations" of social norms and values. This included banning films containing LGBTQI+ content.

The Media Commission blocked Jordanian opposition news website *almajd.net* for several days in May, citing incomplete annual registration procedures. Chief Editor Fahed Rimawi said he did not receive any notification prior to the blocking and that the site complied with regulations. Members of the Jordan Press Association condemned the block as part of an "official approach aimed at undermining media diversity and restricting media freedoms."

In April Reporters Without Borders released its World Press Freedom Index. Jordan's ranking improved from 129 to 120, reversing a downward slide over the previous five years. Experts attributed Jordan's improved ranking to more significant declines in press freedom in other countries rather than any improvement in local conditions. The index noted "Jordan is known for its political stability, which distinguishes it from its neighboring countries. But media professionals censor themselves and respect the implicit red lines around certain subjects."

During the protests following truck driver protests and public transportation strikes in December, press coverage of civil unrest remained severely limited. However, media widely covered the deaths of four PSD officers killed in the line of duty during the protests. Citizens anecdotally related difficulty finding news of the protest situation, including road closures, as demonstrations occurred across the country.

**Libel/Slander Laws:** The cybercrimes law allows public prosecutors to detain individuals suspected of violating libel and slander laws. Internet users face at least three months in jail and a maximum fine of 2,000 Jordanian dinars (\$2,800) if they are found guilty of defamation on social or online media. Government prosecutors relied on privately initiated libel, slander, and defamation lawsuits to suppress criticism of public figures and policies. Dozens of journalists, as well as members of parliament, faced libel and slander accusations filed by private citizens. The law places the burden of proof for defamation on the complainant. Defamation is also a criminal offense. The law forbids any insult of the royal family, state institutions, national symbols, or foreign states, as well as “any writing or speech that aims at or results in causing sectarian or racial strife.”

In September NCHR Chairman of the Board Irhayel Gharaibeh pursued defamation charges against four NCHR staff members, citing the cybercrimes law. His lawsuit was filed days after Washington-based NGO Democracy for Arab World Now (DAWN) issued a report asserting the government had “retaliated” against four other senior NCHR staff members with “spurious criminal charges” related to \$7,800 in allegedly unauthorized per diem. Although Gharaibeh filed the lawsuit in his personal capacity, his role as NCHR Chair underscored the potential for senior officials to use loosely written defamation provisions in the cybercrime law. To adhere to a July amendment of the NCHR Law barring NCHR Chairpersons and Commissioners from belonging to a political party, Gharaibeh resigned effective October 4.

**National Security:** The government frequently cited laws protecting national security in addition to counterterrorism laws to arrest or punish critics of the government and to restrict and deter criticism of government policies and officials. In a report issued in September, Human Rights Watch found activists were often charged with terrorism-related crimes that had definitions so vague they could be applied to nearly any political speech or behavior the government dislikes.

## **Internet Freedom**

The government restricted or disrupted access to the internet and censored online content, including some social media platforms. There were credible reports that the government monitored private online communications without appropriate



legal authority. The law requires the licensing and registration of online news websites, holds editors responsible for readers' comments on their websites, requires that website owners provide the government with the personal data of their users, and mandates that editors in chief be members of the Jordan Press Association. The law gives authorities explicit power to block and censor websites. The press and publications law allows the media commissioner to ban websites without a court order.

The telecommunications law requires telecommunications providers take appropriate measures to enable the tracking of user communications upon a judicial or administrative order.

The government continued to order internet service providers (ISPs) to block access to messaging apps on days when secondary school students take their national examination (Tawjihi), to prevent cheating. Such restrictions have taken place every year since 2015, according to Freedom House.

Voice over Internet Protocol (VoIP) services were restricted by some ISPs, such as WhatsApp and Viber, while Facebook Messenger, Telegram, and Skype remained accessible.

Freedom House's *Freedom of the Net* report rated Jordan as "partially free," noting internet freedoms remained "restricted." Among other concerns, Freedom House reported localized interruptions to Facebook broadcasts by government regulators. They also reported that the government routinely blocked or restricted during protests, VPNs, internet service, connectivity, or bandwidth of communication platforms. According to media reports, the government suspended a social media platform and likely disrupted internet service during fuel price protests in December. Arrests for online use violations continued throughout the year.

In 2021, the Jordan Open Source Association (JOSA) reported that five local ISPs had blocked users from accessing the Clubhouse audio chat application. JOSA reported some users circumvented the blockage through VPNs, but ISPs then blocked VPN tools used to circumvent the censorship, according to Freedom House. The Clubhouse app remained blocked as of December.

The Committee to Protect Journalists indicated authorities blocked websites they

claimed lacked proper registration. Authorities continued to block the website of an online lifestyle magazine with an LGBTQI+ target audience on the grounds it was an unlicensed publication.

There is a 50 Jordanian dinars (\$70) registration fee for news websites. News websites must employ editors in chief with at least four years' membership in the Jordan Press Association. The owner and editor in chief can be fined, in addition to facing criminal penalties, for website content that "includes humiliation, defamation, or disparagement of individuals in a manner that violates their personal freedoms or spreads false rumors about them." Personal websites and blogs were not required to register or pay a fee.

According to journalists, security forces demanded websites remove some posted articles. The government threatened websites and journalists that criticized the government, while it actively supported those that reported favorably on the government. The government monitored electronic correspondence and internet chat sites. Many individuals believed they were unable to express their views fully or freely via the internet, including by personal email.

In August citing the Income Tax Law, the Ministry of Finance announced that individuals who received income through social media or other online publishing activities were required to provide the ministry with information on the sources of their revenue and pay applicable taxes.

On December 16 the government imposed a ban on the social media platform TikTok for allegedly spreading false news and videos during the public transportation strikes which began on December 4, and the subsequent country-wide protests (see section 2.b.). The government disrupted internet service in the cities of Ma'an, where a police officer was killed during civil unrest related to the strikes and demonstrations, and in Karak. TikTok, while reportedly accessible through VPNs by some, remained blocked through the end of December. The full restoration of internet in Ma'an and Karak occurred between December 24 and 30. On December 19, the PSD Cybercrime Unit issued a summons for individuals alleged to have been promoting "hate speech" and "inciting violence against security forces."

## **Restrictions on Academic Freedom and Cultural Events**

The government placed some restrictions on academic freedom. Some members of the academic community claimed there was a continuing government intelligence agency presence in academic institutions, including monitoring academic conferences and lectures. The government monitored political meetings, speech on university campuses, and sermons in mosques and churches. Academics reported the GID must clear all university administrators and professors before their appointment. Academics also reported university administrators must approve all research papers, forums, reading materials, movies, or seminars. Administrators must clear potentially controversial material through the GID. Authorities edited commercial foreign films for objectionable content before screening in commercial theaters.

## **b. Freedoms of Peaceful Assembly and Association**

The government limited the freedoms of peaceful assembly and association. The prime minister continued to exercise temporarily expanded civil powers under defense orders granted in 2020 to curb the spread of COVID-19, to curtail the rights of activists and journalists.

### **Freedom of Peaceful Assembly**

The constitution provides for freedom of assembly, but the government limited this freedom, including by pre-emptively detaining supporters ahead of demonstrations, often citing vague and broad criminal provisions. Security forces provided security at demonstrations granted permits by government or local authorities.

The law requires a 48-hour notification to the local governor for any meeting or event hosted by any local or international group. Several local and international NGOs reported that hotels, allegedly at the request of security officials, required them to present letters of approval from the government prior to holding training courses, private meetings, or public conferences. There were some reported cases of the government denying approval requests without explanation, according to local and international human rights NGOs. Without letters of approval from the government, hotels cancelled the events. In some cases, NGOs relocated the

events to private offices or residences, and the activities were held without interruption. NGOs were able to conduct their activities more freely when using videoconferencing software due to authorities' inability to censor these online platforms.

During the year, government security services required hotels to provide the names and identification card numbers of attendees who participated in hotel-based events or conferences. As a booking prerequisite, hotels requested the list of invitees from the organizations hosting the events, which in turn were reportedly delivered to security officials.

The Ministry of Interior requires notification for demonstrations or any public gathering. The government generally treated this notification as a request and often did not respond in a timely manner or do so at all. Nearly 300 protests occurred across the country throughout the year regarding economic policies, corruption, new legislation, government inefficiency, and Israeli actions in Jerusalem, the West Bank, and Gaza. Security forces shut down several protests, citing defense orders and restrictions on gatherings originally imposed to mitigate the spread of COVID-19. These orders, gradually relaxed towards the end of the year, but remained in place longer than other public health measures across the country. The government shut down approximately 47 protests or gatherings across the country, about 16 percent of all protests.

Security services arrested nine activists affiliated with the tribal hirak movement in February, following their involvement in peaceful protests. They remained in administrative detention for several months without any announced charges. In at least one instance, a governor issued an administrative detention order following a judge's separate release of the same individual on bail. Some of the activists began hunger strikes in April and May. The UN Office of the High Commissioner for Human Rights (OHCHR) issued a statement on April 29 criticizing authorities' arrests of activists in February and March, stating the arrests, "appear[ed] to be part of a deliberate campaign to silence dissent."

In March security services pre-emptively detained approximately 40 political activists, including former Member of Parliament (MP) Ghazi al-Hawamleh and former MP Wasfi al-Rawashdeh, following social media calls for a demonstration

on March 24 to mark Jordan's Arab Spring anniversary. Security services arrested some at their homes during morning house raids, while others were summoned to a police station and then held. Most activists were released later the same day.

Also in March, security services pre-emptively detained approximately 200 supporters of the then disbanded Teachers Union, which was reinstated in June, after union members called for a demonstration outside the Ministry of Education. Supporters of the union had intended to repeat their demand the government reverse the union's December 2020 legal dissolution and reinstate teachers forced into early retirement in 2020. Those detained included then union deputy head Nasser Nawasrah and other council members. Police released other protesters without charges the same day.

On December 4, truck drivers in southern Jordan began peaceful protests against the government's removal of fuel subsidies and resulting price increases. The protests gradually grew and spread across the country, including strikes by public transportation drivers, with a limited number intensifying into violent clashes, including two incidents where four police officers were killed. Police arrested nearly two dozen protesters through December 19. The government restricted social media platform TikTok nationwide and blocked or restricted internet service in Ma'an and Karak from December 16 to the end of the year (see section 2.a.).

Security services and protesters generally refrained from violence during demonstrations throughout the year, with the notable exception of the public transportation strikes and related protests in December, where police occasionally clashed with rioters and routinely deployed tear gas to disperse crowds. NCHR did not report receiving complaints about police using excessive force during the December protests.

## **Freedom of Association**

The constitution provides for the freedom of association, but the government limited this freedom. The law authorizes the Ministry of Social Development, Ministry of Political and Parliamentary Affairs, and Ministry of Trade, Industry, and Supply to approve or reject applications to register relevant civil society organizations and to prohibit organizations from receiving foreign funding for any

reason. It prohibits the use of associations, including civil society organizations, for the benefit of any political organization. The law also gives these ministries significant control over the internal management of associations, including the ability to dissolve associations, approve boards of directors, send government representatives to any board meeting, prevent associations from merging their operations, and appoint an auditor to examine an association's finances for any reason. The law requires associations to inform the Ministry of Social Development of board meetings, submit all board decisions for approval, disclose members' names, and obtain security clearances from the Interior Ministry for board members. The law includes penalties, including fines, for violating the regulations. The Ministry of Social Development is legally empowered to intervene in NGO activities and issue warnings for violation of the law. NGOs receiving a warning are given a two-month probationary period to address violations.

Although the Ministry of Social Development instituted an automated system in 2020 for reviewing foreign fund transfers to local NGOs, it continued to accept paper applications. Some local NGOs reported applications were processed in under 30 days as required by law, while other NGOs continued to claim officials reviewing the foreign fund transfers applied arbitrary criteria to delay or reject their fund transfer applications, effectively shutting down several NGOs. Some NGOs reported that unexplained, months-long delays in the decision process continued and there was no formal process to appeal nontransparent decisions. During the year, an NGO reported being forced to lay off staff due to continued government intervention and foreign funding application rejections and nontransparent delays. NGOs reported the drawn-out approval process for even uncontentious projects and foreign funding was stifling civil society.

Many NGOs receiving foreign funding continued to report the government had delayed or rejected their applications for receipt of foreign funds. Some complained foreign funding applications were denied arbitrarily, or that personal conflicts with application reviewers resulted in denials.

In September the Community Media Network, a local NGO, filed a complaint with the NCHR over authorities' arbitrary rejection of a 25,000 Jordanian dinars (\$35,200) grant from the German development agency to produce a campaign to

raise awareness about recycling, according to HRW.

To avoid the registration and foreign funding processes, civil society organizations sought alternative solutions, including registering as for-profit companies or international NGOs.

Citizens widely suspected the government infiltrated civil society organizations, political parties, and human rights organizations, and that security services monitored political and civil society conferences and meetings.

### **c. Freedom of Religion**

See the Department of State's *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

### **d. Freedom of Movement and the Right to Leave the Country**

The law provides for freedom of internal movement, foreign travel, emigration, and repatriation; however, the government imposed some restrictions.

**In-country Movement:** The government placed some restrictions on the free internal movement of registered Syrian refugees and asylum seekers. Residents of refugee camps were required to apply for permission to relocate from or temporarily depart the camp for family visits or work, limiting their freedom of movement. Only 24 percent of adult residents of Azraq refugee camp and 28 percent of adult residents of Zaatari refugee camp were employed during the year, a decrease from pre-pandemic numbers. Job losses were due partly to the suspension of permits to leave the camps for work between March 2020 and June 2021 under COVID-19 lock-down procedures.

There were continued reports of forced refugee relocations to Azraq refugee camp, including many to Azraq's restricted Village 5, as an alternative to deportation for offenses by Syrian refugees. Such offenses included "irregular status" (expired registration documents or working without a work permit), criminal activities, and potential security risks, which were not clearly defined.

As of December, Azraq camp hosted 44,836 individuals, including 8,914 adults and children in the fenced-off Village 5 area. From January to December, the

government relocated 1,703 refugees to Azraq refugee camp from other areas of the country, including more than 208 newly relocated into Village 5 for security reasons. During the same period, 1,360 refugees in Village 5 were permitted to move out, either to the unrestricted sections of Azraq camp, urban areas, or third countries for resettlement. The refugees forcibly relocated to Village 5 were not officially informed of the reasons for their relocation or given the opportunity to access legal remedies or assistance prior to their relocation. Residents of Village 5 had access to basic humanitarian assistance, to a clinic providing comprehensive health services inside the Village, and to the hospital within Azraq camp if escorted by police. To access the broader camp facilities, Village 5 residents were required to submit a request to security officials, which were generally approved.

Since 2021, personal documents, such as passports, marriage certificates, and birth certificates, of refugees residing in Village 5 have been held by authorities. Authorities also held civil documents of Palestinian refugees from Syria (PRS) residing in Al-Hadiqa camp (formerly known as King Abdullah Park), a fenced space in Irbid Governorate repurposed since 2016 to house PRS and mixed Syrian-PRS families.

Security services customarily allowed parents to request informal “warrants” to suspend the movement inside the country of their children, including adult children, who identified as a member of the LGBTQI+ community (see Section 6).

**Foreign Travel:** Government authorities used arbitrary restrictions to prevent some individuals, including activists and journalists, from leaving the country, including through travel bans. On August 31, two activists in the hirak movement, Ahmed al-Neimat and Abdulrahman Shdaifat, were prevented at Queen Alia International Airport from travelling to Turkey, according to Frontline Defenders. Officials reportedly told the activists they were banned from travel for the possibility of causing “harm to the authorities” and practicing “activism abroad.” Security services have banned the two activists from foreign travel and restricted their right to work, according to the Frontline Defenders report. The government imposed travel bans on others awaiting court hearings throughout the year. Security services customarily allowed parents to request informal “warrants” to prevent foreign travel of their children, including adult children, who identified as a member of the LGBTQI+ community (see section 6).



**Citizenship:** The law stipulates the conditions under which the cabinet may, with the king's approval, revoke a Jordanian's citizenship. Contrary to the law, the Interior Ministry performed revocations without cabinet or royal approval, without notifying an individual in advance, and without giving that person the opportunity to correct the issue, according to a European University Institute Global Citizenship Observatory report issued in February.

For some Palestinian Refugees from Syria with Jordanian citizenship, potential revocation of that citizenship remained a concern. The UN Relief Works Agency (UNRWA) reported at least 89 cases of citizenship revocation since the beginning of the Syrian conflict in 2011. In most cases, authorities did not provide information concerning the reasons for the revocation.

## **e. Protection of Refugees**

The government cooperated with the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in providing protection and assistance to refugees in most cases.

In 2019, a Cabinet decision limited any foreign national arriving in Jordan on a medical, tourism, study, or work visa from registering for international protection. The Ministry of Interior asked UNHCR to suspend registration of asylum seekers who entered this way, effectively halting the registration of more than 5,500 non-Syrian nationals in the country who had already approached UNHCR. These asylum seekers were primarily from Sudan, Somalia, Iraq, Egypt, and Yemen. There was no current data available regarding the number and nationality of asylum seekers who had not been allowed to register as a result of the 2019 Cabinet decision. The government also regulated entry of Syrian nationals into Jordan, including their allowed period of stay, but according to UNHCR it was still possible for Syrians to register under exceptional circumstances on a case-by-case basis with particular consideration of humanitarian grounds.

Of the 689 refugees residing in King Abdullah Park during the year, 521 were PRS and 168 were Syrian. An additional 20 Jordanians who are a part of mixed families also resided in the camp. Camp residents were exposed to a wide range of vulnerabilities, including but not limited to overcrowding and lack of space. The

camp did not meet international standards, lacked several essential facilities, and had only one small shop to obtain daily necessities. PRS residents there were unable to pay residency fees to the Ministry of Interior to obtain legal status, and thus lacked access to formal livelihood opportunities.

In total, more than 19,000 PRS resided in Jordan during the year. Those who lacked documentation and legal status in the country tended to limit their movements, to avoid encountering authorities. In addition, some PRS with legal documentation reported delays in renewing their documentation or informal requirements to switch to types of documentation that offered less protection.

**Access to Asylum:** The law does not provide for the granting of asylum or refugee status, and the government lacked a formal system for providing protection to refugees. Jordan is not a party to the 1951 Convention relating to the Status of Refugees. However, a 1998 memorandum of understanding between the government and UNHCR, renewed in 2014, contains the definition of a refugee, confirms Jordan's adherence to the principle of nonrefoulement, and allows recognized refugees a maximum stay of one year, during which period UNHCR must find them a durable solution. The time limit is renewable, and the government generally did not force refugees to return to their country of origin. Authorities require all Syrians in the country to register with the Ministry of Interior and obtain a ministry-issued identification card.

The country's border crossings with Syria remained closed to new refugee arrivals. Syrians may not enter Jordan without prior approval from the Ministry of Interior or a valid residency permit in a third country. Syrians staying in Jordan as refugees may visit Syria for a short period without losing their status in Jordan if they obtain permission in advance from the Ministry of Interior to reenter Jordan.

The Rukban border crossing between Jordan and Syria remained closed, and the government continued to restrict humanitarian access to the area, which it considers a "closed military zone."

**Abuse of Migrants and Refugees:** Forced labor or conditions indicative of forced labor occurred among migrant workers in the domestic work and agricultural sectors (see section 7.b.).

**Freedom of Movement:** The government placed some restrictions on the free internal movement of registered Syrian refugees and asylum seekers. Residents of refugee camps were required to apply for permission to relocate from or temporarily depart the camp for family visits or work, limiting their freedom of movement (see section 2.d.).

**Employment:** The government issued work permits in a limited number of sectors to some UNHCR-registered Syrian refugees; however, the government did not permit non-Syrian refugees registered with UNHCR to work.

Since 2016 the government issued more than 323,421 annual work permits to UNHCR-registered Syrian refugees, with 92 percent of these work permits issued to men. Most of these work permits, which granted access to sectors “open” to foreign labor, had expired by the beginning of the year. In 2021, 62,000 work permits were issued to Syrians.

The government did not permit formal work for UNHCR-registered non-Syrian refugees. Non-Syrian refugees seeking work permits were required to renounce their registration with UNHCR to qualify for a permit. Since January, more than 100 individuals, mostly Yemeni nationals, have withdrawn their international protection applications with UNHCR to pursue work permits, putting them at risk of deportation. NGOs reported on 32 individuals who received deportation orders in 2021. Although some individuals, primarily Yemenis, were placed in detention, there were no known reports of deportation for labor law infractions.

The Ministries of Interior and Labor, in coordination with the United Nations, permitted Syrian refugees living in the camps to apply for work permits. The agreement allows camp-based refugees to use their work permits as a 30-day leave pass to work outside the camp. UNHCR and local NGOs reported unemployment for refugee women and youth remained at concerning high levels.

**Access to Basic Services:** The government continued to provide access to free primary and secondary education to Syrian refugee children. An estimated 50,650 Syrian and 21,540 non-Syrian school-age children remained out of school due to financial challenges, transportation costs, child labor, child marriage, bullying by fellow students and teachers, and administrative challenges. This year, as a result

of financial support from international donors to the Ministry of Education, non-Syrian refugees could attend government schools for free for the first time, although implementation challenges remained. The Prime Minister's Office continued to issue an annual circular allowing free enrollment of refugee children irrespective of documentation, with the requirement that documentation be provided by the end of the first semester. In practice, some nationalities continued to experience documentary requirements as barriers to entry. Unregistered asylum seekers could not register in public schools.

The government provided access to the public healthcare system for Syrian and non-Syrian refugees, who were required to pay the same fees as uninsured citizens. Unregistered asylum seekers paid the higher foreigner rate at public health facilities, which was unaffordable to most of them. Unregistered HIV+ asylum seekers are required to register with the Ministry of Health to access antiretroviral medications, putting them at risk of deportation under government public health regulations.

Access to basic civil services, including renewal of identity documents and the registration of marriages, deaths, and births, remained highly complex for PRS. These vulnerabilities put undocumented refugees at additional risk of abuse by third parties such as employers and landlords.

Approximately 174,000 residents of Palestinian descent, such as those referred to as "ex-Gazans," do not hold Jordanian citizenship. To accommodate this population of 174,000 individuals, authorities issued registration cards that provided permanent residency and served as personal identity documents, and temporary Jordanian passports without national identity numbers. Without a national identity number, however, Palestinian refugees from Gaza were unable to access national support programs and were excluded from key aspects of health and social service support, although they were able to access UNRWA services.

**Temporary Protection:** The government did not actively target individuals without official refugee status for deportation and tolerated the prolonged stay of many Iraqis and other refugees beyond the expiration of the visit permits under which they had entered the country. Iraqi and other non-Syrian refugees accrue fines for overstaying their visit permits and must pay or settle the fines and

penalties prior to receiving an exit visa, unless they are departing for third country resettlement or opt to spontaneously return to their country of origin. They then face a five-year ban from reentry into Jordan.

#### **f. Status and Treatment of Internally Displaced Persons**

Not applicable.

#### **g. Stateless Persons**

The country contributes to statelessness, including through discrimination against women in nationality laws and challenges obtaining birth registration.

Only fathers can transmit citizenship. Women do not have the legal right to transmit citizenship to their children, which can lead to statelessness if the child does not receive the nationality of a non-Jordanian father. Women may not petition for citizenship for noncitizen husbands, who may apply for citizenship only after maintaining continuous Jordanian residency for 15 years. Once a father has obtained citizenship, he may apply to transmit citizenship to his children. Although the nationality law stipulates the possibility of applying for citizenship after 15 years of legal residency, in practice, the government has not implemented this provision.

In recent years, the government has removed impediments for Syrian refugees who sought to obtain vital records and rectify their legal status if they lacked documents upon entering or while residing in Jordan. Some refugees still faced challenges in obtaining civil status documentation, mainly when applying for birth registrations in case of informal marriages or marriages without any documentation, or when registering marriages that took place out of court. In such instances, and in the cases of households headed by women where the father's absence was a challenge, there was a risk of statelessness among these populations.

### **Section 3. Freedom to Participate in the Political Process**

The constitution does not provide citizens the ability to choose their executive branch of government or upper house of parliament. The king appoints and dismisses the prime minister, cabinet, and upper house of parliament; can dissolve

parliament; and directs major public policy initiatives. Citizens have the ability to choose the lower house of parliament in generally credible periodic elections based on universal and equal suffrage and conducted by secret ballot. Citizens also elect 97 of the 100 mayors, some members of governorate councils, and all members of municipal councils. While voting processes were well run, official obstacles to political party activity and campaigning limited participation.

Parliament approved new electoral and political parties laws in April, establishing a party-based proportional representation electoral system. The new legislation stipulated that parties would compete for 30 percent of seats in the lower house of parliament in the next election, while preserving geographic electoral districts for other members of parliament. The new law expands the party-based seats to 50 percent in the following election, reaching 65 percent of lower house seats through remaining elections over the next 10 years. Additionally, under the new law, party registration and oversight was transferred from the Ministry of Political and Parliamentary Affairs to the Independent Election Commission (IEC). To encourage participation of youth in political parties, the age of candidacy was lowered to 25 years, party electoral lists were required to include at least one individual younger than 35 years among the first five candidates, and university students were allowed to join parties and participate in political activity on campus. Furthermore, party membership rolls were required to comprise of 20 percent women and 20 percent youth, and one founder was required be a person with a disability.

A law passed in September 2021 restored the direct election of mayors and municipal council members, with the exception of Amman, Wadi Musa (Petra), and Aqaba. The law allows the cabinet to appoint 40 percent of the governorate councils' members (from 15 percent in the 2015 law).

## **Elections and Political Participation**

**Recent Elections:** Almost 30 percent of eligible voters participated in the municipal elections held in March. Organized parties were largely absent from these elections, including the Muslim Brotherhood-affiliated Islamic Action Front, which boycotted the election. While local monitors reported the elections were technically well administered, some watchers observed significant violations in the

elections process and some reported accounts of vote-buying. Amman's Al Hayat Center for Civil Society Development assessed voting secrecy was compromised in many polling booths.

The government held parliamentary elections in November 2020. Local monitors reported the elections were technically well administered.

**Political Parties and Political Participation:** The law prohibits parties based on religion, sect, race, gender, or origin, as well as membership in unlicensed parties. The law also prohibits members of non-Jordanian political organizations, judges, and security service personnel from joining parties. During the year, there were 58 different parties with cumulatively less than 40,000 members, and with the exception of the Islamic Action Front, negligible party representation in parliament. The new political parties law passed in April requires all existing parties to re-register by May 15, 2023. Existing parties that do not satisfy the new regulations for registration will be de-registered.

Even though the law guarantees the rights of individuals to form parties, authorities have reportedly intimidated individuals attempting to form political parties, and there is a long-standing fear of creating or joining political parties. According to media reports, many Jordanians experienced or witnessed political activity being punished by authorities, resulting in blacklisting for jobs and economic opportunities. According to Freedom House, while voters and candidates are generally free from overt threats or violence, they remain heavily influenced by tribal affiliations and the state-sponsored patronage networks that accompany them. Freedom House also reported the GID is widely believed to influence the electoral process. Local civil society organizations were able to monitor and comment on the election process during the year and in 2020.

**Participation of Women and Members of Minority Groups:** No laws limit participation of women in the political process, but there is a wide gender gap in political participation. The law provides women and members of some minority groups representation in the political process through quotas, as the electoral law stipulates a minimum of 18 quota seats for women and up to 12 seats designated for certain ethnic or religious minorities. Human rights activists cited cultural bias against women as an impediment to women participating in political life on the

same scale as men. Women elected competitively or appointed through quota systems held a small minority of positions in national and local legislative bodies and executive branch leadership roles. The 29-member cabinet included two female ministers as of November: the minister of culture and the minister of state for legal affairs. Sixteen women served as members of parliament, 15 selected by quota and one through open competition. The 2021 municipalities and decentralization law raised the quota for women on governorate councils from 10 percent to 25 percent of elected members and provided for a 20 percent female quota on municipal councils. Compared to previous years, female candidates performed generally well in municipal elections, though no women won mayorships. Sixty-eight women were elected beyond the 25 percent quota. Twenty-seven percent of municipal council members were women.

Historically, persons with disabilities in Jordan have rarely participated in elections either as candidates or voters due to prevailing cultural stigmatization, the absence of accessible polling stations, and a lack of awareness of their rights to participate in the electoral process or how to vote, according to NGO reporting. The IEC and the Higher Council for the Rights of Persons with Disabilities (HCD) signed an MOU that stipulated municipalities must have at least one fully accessible polling station and partially accessible stations at other voting sites. HCD initiated a two-year action plan to increase the number of accessible polling stations by 2024.

All Palestinian refugees of Jordanian nationality can vote irrespective of their location (e.g., residents of the 10 official UNRWA camps, three nonofficial camps, or residents not in camps) by virtue of their citizenship rights. Palestinian refugees without Jordanian nationality are not allowed to vote in national or municipal elections or join political parties. However, they are allowed to vote for other committees under the jurisdiction of the Jordanian Department of Palestinian affairs (see section 6 for legal statuses of Palestinians). Citizens of Palestinian origin were underrepresented at all levels of government and the military. The law reserves nine seats in the lower house of parliament for Christians and three seats for the Circassian and Chechen ethnic minorities combined, an overrepresentation of these minorities compared to their percentage of the population. The law stipulates Muslims must hold all parliamentary seats not specifically reserved for Christians. There are no reserved seats for the relatively small Druze population,



but its members may hold office under their government classification as Muslims. Christians served as cabinet ministers, senators, and ambassadors. There was one Druze cabinet member.

## **Section 4. Corruption and Lack of Transparency in Government**

The law provides criminal penalties for corruption by officials, although the government did not implement the law effectively. There were isolated reports of government corruption during the year. Authorities began showing an increased willingness to open public corruption investigations in recent years. Courts convicted more than a dozen local officials as well as the former Jordan Phosphate Mines Company chair (in absentia) in separate trials during the year. The use of family, business, and other personal connections to advance personal economic interests was widespread.

In 2021 the king sent an open letter to the GID director stating that because civilian oversight institutions and the judicial system had “stepped up to their constitutional and legal responsibilities,” the GID should focus solely on national security. Some observers believed the GID generally did not decrease its involvement in civilian institutions during the year.

Activists and journalists found it difficult to access government reporting and statistics. They attributed the lack of access to ineffective record keeping and the government’s withholding information from the public.

**Corruption:** On September 6, Jordan’s highest appeals court upheld the SSC convictions in a corruption case related to the illegal production and smuggling of tobacco overseen by local government officials. The appeals ruling upheld prison sentences ranging from 10 months to 22 years, fines between 11,000-20,000 Jordanian dinars (\$15,515 to \$28,209), and related asset seizures. In 2021, a three-judge SSC panel convicted 23 defendants, most of whom were local government officials, in the case. The judges also acquitted four defendants and dismissed charges against two defendants who died during the trial.

On April 27, a court convicted in absentia former Jordan Phosphate Mining

Company chair Walid al-Kurdi of exploitation of office and sentenced him to 18 years in prison and a 191 million Jordanian dinars (\$378.8 million) fine. Kurdi was previously convicted in absentia in 2013 for approving hundreds of millions of dinars in overcharged shipping contracts.

A First Instance Court convicted 16 out of 30 individuals on April 28, including a mayor and five municipal council members for abuse of power. All defendants were sentenced to three months of imprisonment and fined 500 Jordanian dinars (\$706). The court also fined 10 municipal council members for an additional 5,000 Jordanian dinars (\$7,062).

## **Section 5. Governmental Posture Towards International and Nongovernmental Investigation of Alleged Abuses of Human Rights**

A number of domestic and international human rights groups operated in the country with government restrictions. The law gives the government the ability to control NGOs' internal affairs, including acceptance of foreign funding. NGOs generally were able to investigate and report publicly on human rights abuses, although government officials were not always cooperative or responsive.

**Retribution against Human Rights Defenders (HRDs):** In April, NGO Front Line Defenders and research organization Citizen Lab reported uncovering Pegasus spyware on the phones of four local human rights defenders. The report alleged the government was behind the spyware, based on a digital forensic investigation (see section 1.f.).

**Government Human Rights Bodies:** The National Center for Human Rights (NCHR), a quasi-independent institution established by law, received both government and international funding. The prime minister nominates its board of trustees, and the king ratifies their appointment by royal decree. The board of trustees in turn appoints NCHR's commissioner general. The NCHR's annual report assessing compliance with human rights sometimes criticizes government practices. The NCHR submits the report to the upper and lower houses of parliament and to the cabinet. NCHR recommendations are not legally binding, but the government coordinator for human rights (GCHR) in the Prime Minister's

Office is required to respond to the report's recommendations and to measure progress towards respecting international human rights. The GCHR generally adhered to these requirements. A July amendment to the NCHR law stipulated the Chairperson and Commissioner General must not be affiliated with any political party.

Ministries' working groups continued to meet and implement their responsibilities under the national human rights action plan, a 10-year comprehensive program launched in 2016 to reform laws in accordance with international standards and best practices, including improving accessibility for persons with disabilities. Developments on the action plan were regularly published on the ministries' websites. Through November, 21 percent of the plan's activities were completed, 43 percent remained ongoing, and 36 percent remained pending. In 2021 the GCHR, in collaboration with local NGOs, launched a national human rights abuse complaint mechanism through an existing government services application called *bi-khidmatikom* (at your service) and trained liaison officers to identify and respond to human rights abuses. The platform was in a trial phase this year, and while the application was generally accessible to the public, it did not fully operate to the mechanism's stated objectives of separating human rights violations for the GCHR from other complaints submitted on the application.

The GCHR head and the Prime Minister's Office human rights unit coordinate government-wide implementation of the national plan, including drafting and responding to human rights reports. The GCHR office conducted a total of 18 activities during the year and 179 remained ongoing under the national human rights plan, including discussions of the Universal Periodic Review recommendations, and workshops on the inclusion of persons with disabilities in the public and private sectors, gender, trafficking in persons, and general human rights awareness workshops.

## **Section 6. Discrimination and Societal Abuses**

### **Women**

**Rape and Domestic Violence:** The law stipulates a sentence of at least 10 years' imprisonment with hard labor for the nonspousal rape of any individual age 15 or

older. Spousal rape is not illegal. Conviction for rape of a child younger than age 15 potentially carries the death penalty. The law makes prosecution mandatory for felony offenses, including rape. Nonfelony offenses, such as certain cases of domestic violence, are first subjected to mediation by the Family Protection Department (FPD) of the PSD. The law provides options for alternative sentencing in domestic violence cases, with consent of the victim. The government did not effectively enforce the law against rape.

Gender-based violence was prevalent. While the reported number of “honor crimes” decreased, various activists and officials reported an increase in domestic violence. As of October, human rights activists reported 30 women died from domestic violence, and the intensity of the violence was higher than previous years. Experts believed the number of domestic violence-related deaths was higher than 30, but some were categorized as suicides.

The NGO Sisterhood Is Global Institute (SIGI) reported a 94 percent increase in family-based killings compared to calendar year 2021. SIGI reported 35 killings during the year, with 60 percent targeting women and girls, and 40 percent targeting children, both boys and girls.

On June 23, a man, age 37, disguised as a student entered a local university and murdered female nursing student Eman Irsheid by shooting her to death. Dozens gathered in front of an Irbid hospital where Irsheid was admitted, calling for the death penalty against the killer during a three-day manhunt. The PSD reported the suspect committed suicide after being surrounded by police on June 26. A prosecutor issued a gag order restricting the publication of news related to the case through the end of June.

In August, a man was charged with stabbing his wife to death in an Amman hospital. Separately, another man was charged in August for stabbing his wife to death in Zarqa. Both were charged with murder and remained in detention through year’s end.

Throughout the year, the National Council for Family Affairs (NCFA), a civil society organization chaired by the queen, implemented guidelines for responding to domestic violence against women and children. NCFA launched a 2021-2023

matrix of priorities endorsed by the Cabinet. These priorities included police and justice, psychosocial services, health, awareness and prevention, integration, and coordination. Women may file complaints of rape or physical abuse with certain NGOs or directly with judicial authorities. However, due to social taboos and degrading treatment at police stations, gender-based crimes often went unreported. NGOs also highlighted that there were no official figures on the prevalence of violence against unmarried girls and women aged 50 years and over. NCFA indicated cases of early marriage decreased during the year.

The FPD investigated more than 6,793 domestic violence cases during the year, referring 4,590 cases to the judiciary and 1,303 to mediation. Many cases were settled, dismissed, or found to be outside FPD jurisdiction. Some legal experts assessed settlements did little to stop domestic and gender-based violence from reoccurring. Some NGOs and lawyers reported pressure against taking physical abuse cases to court and asserted that courts routinely dropped two-thirds of assault cases that resulted in little or no physical injury. Spousal abuse is technically grounds for divorce, but husbands sometimes claimed cultural authority to strike their wives. Observers noted while judges generally supported a woman's claim of abuse in court, due to societal and familial pressure and fear of violence such as "honor" killings, few women sought legal remedies. Broad legal authorities allowed judges to base some sentencing decisions on their personal convictions rather than strict sentencing guidelines. Some legal experts reported cases of women who went to police stations to report gender-based violence and were turned away and told to instead report the crime to the FPD, which operates fewer stations in fewer locations.

According to international human rights organizations operating in the country, gender-based violence, particularly domestic violence, increased during the COVID-19 pandemic. Emotional and physical abuse, often perpetrated by an intimate partner or member of the family, were the most common forms of abuse.

Governors used the crime prevention law to detain women administratively, ostensibly for their protection. The Ministry of Social Development operated a shelter for women at risk of violence and "honor crimes." As of September, the Amman-based shelter for women at risk of "honor crimes" had served 132 women, including administrative detainees from the Juweideh women's correctional and

rehabilitation center, women referred to the shelter by the FPD, and women directly referred to the shelter by governors. The Ministry of Social Development allows children younger than age 10 to accompany their mothers, including mothers who had previously been detained under protective custody.

The FPD operated a domestic violence hotline and received inquiries and complaints via email and in person. The Ministry of Social Development maintained a second shelter for female victims of domestic violence in Irbid. NGO reports indicated, prior to and during the COVID-19 pandemic, all government-run shelters were operating below capacity. In March, the ministry opened a new shelter in Aqaba with an eight-person capacity, and as of October it held two individuals.

The NCFA published a three-year national plan to respond to gender-based violence, domestic violence, and child protection. NGOs reported that health-care providers and teachers were still hesitant to report abuse due to the absence of witness protection guarantees. Specialized judges continued expediting domestic violence cases; misdemeanor cases took approximately three days to resolve, according to the FPD. The NCFA assisted the government in developing mediation guidelines. NGOs reported improvements to domestic violence-related procedures and policies in law enforcement and the judiciary, but severe shortfalls remained. Members of law enforcement outside of the FPD lacked awareness of appropriate response for domestic violence-related procedures, and there were general shortcomings with legal settlement processes.

**Other Forms of Gender-based Violence:** Civil society organizations stated that many “honor crimes” went unreported, especially in nonurban areas due to social taboos, fear of additional violence, and perception of inadequate outcomes in the formal justice system. Experts said the penal code provided an arguable legal basis for assaults and killings, especially those committed by men, of family members caught in the act of adultery or perceived to be involved in “illegitimate” sexual relations. The law also limits the right of self-defense for victims of these attacks.

In June 2021 a man beat to death his daughter, age 21, identified as Rania, with an electric cable. NGOs suspected it was an “honor” killing. The grand felonies prosecutor charged the father with torturing and murdering his daughter. The

father remained in detention, and the case was still in process through year's end. The killing provoked popular anger and calls on social media for justice for Rania and other women killed by their families.

Despite a law ending the practice of absolving rapists who married their victims, observers noted that a customary belief held if a woman marries her rapist her family members do not need to kill her to “preserve the family’s honor.” Nevertheless, NGOs noted that this law helped reduce such instances and encouraged more women to report rape, especially since the establishment of the shelter. There were no reported instances of forced marriage as an alternative to a potential “honor” killing during the year. NGOs have reported cases of forced marriage occurred shortly after an accusation of rape, due to family and societal pressure, before any formal trial began. In one case, a survivor of child sex trafficking was forced by her father into a court-approved marriage after reaching 15, the legal age of marriage.

Governors referred potential victims of “honor crimes” to the Ministry of Social Development shelter instead of involuntary protective custody in a detention facility. During the year governors directly referred 132 women to the shelter. Most cases were referred by the FPD and NGOs.

The law authorizes DNA tests and other scientific means to identify paternity of a newborn associated with “rape, deception, and deceit.”

**Sexual Harassment:** The law strictly prohibits sexual harassment and does not distinguish between sexual assault and sexual harassment. Both carry a minimum prison sentence of four years’ hard labor. The law also sets penalties for indecent touching and verbal harassment but does not define protections against sexual harassment. The government did not effectively enforce the law; sexual harassment of women and girls in public was widely reported. NGOs reported refugees from Syria and foreign workers, particularly garment workers and domestic workers, were especially vulnerable to gender-based violence in the workplace, including sexual harassment and sexual assault.

**Reproductive Rights:** There were no reports of coerced abortion or involuntary sterilization on the part of government authorities. There were no governmental

policies limiting family size.

The law permits couples the basic right to decide the number, spacing, and timing of their children. Contraceptives were widely accessible and provided free of charge in public clinics for married couples, while unmarried persons had to purchase it in private clinics. Hormonal and emergency contraceptives and medical abortion drugs were not included on the government's over-the-counter list, according to UK-based scientific journal *Bio Med Central* (BMC). According to the UN Population Fund's *State of World Population 2021* report, 61 percent of women in Jordan aged 15 to 49 years make their own decisions regarding health care, contraception, and sex with their husbands. The report estimated 22 percent of women ages 15-49 used a modern method of contraception. BMC reported that sexual and reproductive services were underused by youth.

Advocates raised concerns regarding legal, social, and cultural barriers to services for unmarried women and access problems for women and girls with disabilities, including consent for hysterectomies. Human rights groups raised concerns regarding the treatment and penalties faced by unmarried women who give birth at hospitals, including hospital staff's reporting them to authorities. An NGO reported that unmarried women risked forced separation and institutionalization of their children by the government.

The government provided access to sexual and reproductive health services, including rape kits and forensic examinations, for survivors of sexual violence, but emergency contraception was generally not available, limiting clinical management of rape. According to an NGO, health professionals did not consistently use trauma-informed practices when interacting with survivors and the quality of care varied throughout the country.

Another NGO reported unmarried survivors of rape who became pregnant faced difficulties gaining access to safe delivery and establishing legal status for their children due to legal and social barriers.

Adolescent girls and unmarried women who became pregnant were routinely transferred to government-funded shelters where they could receive educational services, although the quality varied. Access to sexual and reproductive health



services was generally more challenging for women and adolescent girls in rural settings. Social norms prevented underaged girls who became pregnant from attending school.

Access to emergency health care, including services for the management of complications arising from abortion was legally permitted.

**Discrimination:** The constitution affords equal rights to men and women, but the government enforced discriminatory laws against women. Observers emphasized the ambiguity of the relevant passage in the constitution, and the women's subcommittee of the Royal Committee for the Modernization of the Political System recommended clarifying definitions of equality in the constitution in an October 2021 report. In January, parliament amended the constitution by adding "Jordanian women" to the chapter's title on the Rights and Duties of Jordanians. While many applauded the amendment, several parliamentarians admitted it did not change the legal environment and was largely a symbolic gesture.

The law does not necessarily provide for the same legal status, rights, and inheritance provisions for women as for men. Women experienced discrimination in several areas, including divorce, child custody, citizenship, the workplace, and, in certain circumstances, the value of their testimony in a sharia court handling civil law matters. The Jordanian National Commission for Women, a quasi-governmental organization, operated a hotline to receive discrimination complaints. The hotline received 19 complaints during the year.

NGOs reported a disproportionate number of individuals charged with nonrepayment of debt were women unable to repay loans they had taken out on behalf of their male family members. In May, amendments to the Enforcement Law restricted the imprisonment of debtors for amounts less than 5,000 Jordanian dinars (\$7,000). The new law capped punishment for multiple unpaid debts at 120 days prison per year.

In June the government extended a defense order suspending prison sentences penalizing the nonrepayment of debt under 100,000 Jordanian dinars (\$140,000). On June 26, authorities released 89 detained debtors who had served more than 60 days in prison this year, in accordance with sentence reductions approved by

parliament in May.

Women faced legal and cultural discrimination in employment and occupation (see section 7.d.). The Ministry of Labor designated an office for handling discrimination claims in the workplace for both men and women. Local NGOs advocated for better representation of women in leadership positions in both the public and private sectors. Some NGOs criticized the absence of provisions on maternity leave, childcare, and access to equal health insurance for female workers.

Under the law that applies sharia rulings, daughters inherit half the amount that sons receive, with some exceptions. A sole female heir receives only half of her parents' estate, with the balance going to uncles, whereas a sole male heir inherits all of his parents' property.

In Jordan there are no civil marriages, and all marriages must be performed according to a recognized religious tradition. While Muslim men may marry non-Muslim women, Muslim women are forbidden from marrying non-Muslim men. Women do not have the legal right to transmit citizenship to their children, as only fathers can transmit citizenship. This can lead to statelessness if the child does not receive the nationality of a non-Jordanian father (see section 2.g.).

The law gives fathers legal authority over the child, while mothers are given responsibility for the physical care of the child. However, custody can easily be taken from the mother if she is found to be "unfit" or remarries. The law gives the father the decision-making power for the child's education, country of residence, and religious upbringing, and permits only the father to obtain passports for the child. On September 27, a group of women protested outside parliament, decrying an amendment to the children's rights law changing the word "parents" to "father or guardian" for decision-making about a child's education. The Ministry of Justice defines "guardian" as the father or paternal grandfather of the child.

Women may seek divorce without the consent of their husbands only in limited circumstances, such as abandonment, spousal abuse, or in return for waiving financial rights; however, in most other cases divorce requires the husband's consent. The law allows retention of financial rights under specific circumstances,

such as spousal abuse. Special religious courts for recognized Christian denominations under the Council of Churches adjudicate marriage and divorce for Christians, but sharia applies to all persons for inheritance, irrespective of religion.

By order of the sharia court, alimony for women continued to be paid electronically but not delivered through the post office. Due to suspension of work and salaries in some cases, the court resorted to the Alimony Credit Fund to pay women and children's alimony and improved their access to it.

The government provided men with more generous social security benefits than women. Family members who inherited the pension payments of deceased civil servants received differing amounts according to the heir's gender. Laws and regulations governing health insurance for civil servants permit women to extend their health insurance coverage to dependents or spouses.

The law allows a non-Muslim mother to retain custody of her Muslim children.

In February 2021, the PSD launched a gender-mainstreaming strategy for the years 2021 to 2024. Prior to the launch, female officers mainly served in traffic police and family protection capacities. This strategy opened all PSD positions to female officers and aimed to recruit young women and retain officers after marriage through family-friendly policies. Since launching, 306 female officers took on PSD positions outside of the traffic police or family protection. The Jordan Armed Forces also launched its own strategy in September 2021 to increase women's participation, including recruitment, retention, and advancement in leadership positions. Under this strategy, the armed forces accepted more female pilots into the air academy and deployed more women in UN peacekeeping missions during the year.

## **Systemic Racial or Ethnic Violence and Discrimination**

The constitution protects Jordanians on the grounds of race, language, and religion. However, the law does not specifically address protections of ethnic minority groups against violence and discrimination. While there were no reports of systemic violence against ethnic minority groups, there were some reports of discrimination.

Four distinct groups of Palestinians resided in the country, not including the PRS covered in section 2.e. Many of these individuals reportedly faced some discrimination. Palestinians and their children who migrated to the country and the Jordan-controlled West Bank after the 1948 Arab-Israeli war and resided in Jordan between December 20, 1949 and February 6, 1954 received full citizenship. The same applied to Palestinians who migrated to the country after the 1967 war and before June 1, 1983 and held no residency entitlement in the West Bank. Palestinians and their children still holding residency in the West Bank after the 1967 war were not entitled to citizenship, but they could obtain temporary travel documents without national identification numbers, provided they did not also carry a Palestinian Authority travel document. These individuals had access to some government services; they paid 80 percent of the rate of uninsured foreigners at hospitals and noncitizen rates at educational institutions and training centers. Refugees and their children who fled Gaza after the 1967 war, commonly referred to as ex-Gazans, were not entitled to citizenship, and authorities issued them temporary travel documents without national numbers. These refugees had restricted access to government services and were almost completely dependent on UNRWA for basic services.

Jordanian citizens of Palestinian heritage were underrepresented in parliament and senior positions in the government and the military, as well as in admissions to public universities due to social barriers. They had limited access to university scholarships, compared to citizens of Jordanian heritage, but were well represented in the private sector.

Other minority populations in Jordan include Circassians, Chechens, Armenians, Assyrians, Bani Murra (Jordanian/Syrian “Roma” regionally known as “Dom”), in addition to the Syrian, Iraqi, Yemeni, and Sudanese refugee populations (see section 2.f.). Minority Rights Group International reported the Bani Murra faced widespread prejudice and hostility across the region, suffered from high rates of poverty, and had limited access to education, employment, and government services.

## **Children**

**Birth Registration:** Only fathers can transmit citizenship. The government did

not issue birth certificates to all children born in the country. The government deemed some children illegitimate and denied them standard registration, including children of unmarried women or interfaith marriages involving a Muslim woman and converts from Islam to another religion. Instead, the government issued these children, as well as orphans, special national identification numbers that differed from the standard national identification numbers given to most citizens. This made it difficult for these children to attend school, access health services, or receive other documentation. National identification numbers do not change during a person's lifetime and are used in all forms of identification. If children of Jordanian mothers and noncitizen fathers apply and resided in the country for at least five years, they may gain access to certain services enjoyed by citizens, including basic education; subsidized health care; the ability to own property, invest, and obtain a driver's license; and employment priority over other foreigners. To access these services, children must obtain a special identification card through the Civil Status Bureau.

By law children of Jordanian mothers and noncitizen fathers who apply for social services must reside in the country and prove the maternal relationship. The cabinet may then approve citizenship for these children under certain conditions, but this mechanism was not widely known, and approval rarely occurred. NGOs continued to lobby the government to make access to social services less onerous.

Authorities separated children born out of wedlock from their mothers and placed them in orphanages, regardless of the mother's desire for custody.

**Education:** Education is compulsory from ages six through 16 and free until age 18. Children without legal residency faced obstacles enrolling in public school (see section 2.e.). A new Childs Rights law imposes a fine of 300 to 500 Jordanian dinars (\$424 to \$706) on parents if their child drops out of school. Some children of female citizens and noncitizen fathers must apply for residency permits every year, and authorities did not assure permission (see section 2.g., Stateless Persons).

**Child Abuse:** On September 19, the Lower House approved the first children's rights law that guarantees the basic rights of a child, including against abuse. The bill institutionalized some of Jordan's commitments under the UN Convention on the Rights of the Child (CRC), which Jordan ratified in 2006. The law covers

health and education protections, and obliges teachers and doctors, among others, to report cases of child abuse to authorities. The law tasks the Ministry of Social Development and other stakeholders to prepare policies and programs ensuring the inclusion of children's rights. The Ministry of Education will be required to prevent children from dropping out of school, ensure quality of education, and provide enough teachers and counselors in educational institutions. The law requires children permanently or temporarily deprived of their familial environments to be placed in alternative care at the decision of a specialized judicial council. Parliament revised text in the law's original draft that stipulated "parents" have the right to make decisions related to a child's education, changing the word "parents" to "guardian," meaning the father or next male relative. NGOs and activists assessed that this change discriminated against women and further limited mothers' custody rights to their children.

The NCFA indicated other provisions of the children's rights law included establishing the legal definition of a child, providing children access to legal aid, creating green spaces, and establishing an addiction and awareness center.

Other laws also specify punishment for child abuse. For example, conviction for rape of a child younger than age 15 potentially carries the death penalty. There were no convictions for rape of a child younger than 15 during the year. Local organizations working with abused children pointed to gaps in the legal system that regularly resulted in lenient sentencing, particularly for family members. In child abuse cases, judges routinely showed leniency in accordance with the wishes of the family. In some cases, authorities failed to intervene when confronted with reports of abuse, resulting in escalating violence and death.

In 2021 the PSD announced the merger of the Juvenile Police Department with the FPD to unify efforts aimed at protecting children and families. The PSD, the judiciary, and the Ministries of Justice, Health, and Social Development jointly developed a formal mediation process for juvenile cases, including a manual with guidelines. A specialized "settlement" judge must oversee the resolution of each case and confirm consent of both parties, receiving recommendations from mental health providers and social workers, and may order community service, quash criminal charges, and issue protection orders. This year, FPD received 4,738 juvenile cases, referring 2,698 to the judiciary and 2,040 cases to settlement.

**Child, Early, and Forced Marriage:** The minimum age for marriage is 18. With the consent of both a judge and a guardian, a child as young as age 16 may be married. Judges have the authority to decide if marriage of girls between age 16 and 18 would be “in their best interest” and to adjudicate the marriage contract. Local press reported 10,000 to 11,000 child marriages during the year. Early and forced marriage among refugee populations remained high. During the year a large number of marriages of Syrians in the country involved a child bride, according to many sources. According to local and international organizations, some Syrian refugee families initiated early marriages for their daughters to help mitigate the stresses of poverty.

**Sexual Exploitation of Children:** The law stipulates a penalty of six months’ to three years’ imprisonment for the commercial sexual exploitation of children. The law prohibits the distribution of pornography involving persons younger than age 18. The law does not specifically prohibit the possession of child pornography without an intention to sell or distribute. The law penalizes those who use the internet to post or distribute child pornography. The minimum age of consensual sex is 18, although sexual relations between minors whose marriages the courts approved are legal. Authorities generally enforced the law related to sexual exploitation of children.

**Displaced Children:** Within the large refugee population, there were significant numbers of displaced children (see section 2.e.).

**Institutionalized Children:** Authorities automatically referred cases involving violence against persons with disabilities or institutionalized persons to the FPD. The Ministry of Social Development monitoring committee highlighted the pervasive use of physical discipline; physical and verbal abuse; unacceptable living conditions; and a lack of educational, rehabilitative, or psychosocial services for wards and inmates.

## **Antisemitism**

Aside from foreigners, there was no resident Jewish community in the country. Antisemitism was present in media. Editorial cartoons, articles, and opinion pieces often negatively depicted Jews, without government response. The national school

curriculum, including materials on tolerance education, did not mention the Holocaust and used antisemitic tropes. Some private school curriculums included information on the Holocaust. Increased antisemitic hate speech on social media appeared to coincide with escalated tensions in Israel and the Palestinian territories. Several Jewish travelers reported discriminatory practices such as the confiscation of religious items by border authorities at ports of entry. In 2021, German media outlet Deutsche Welle suspended its relationship with Roya TV, citing “anti-Israel and antisemitic comments and caricatures spread by the broadcaster on social media.” Roya TV and other local media, including government-affiliated outlets, continued to publish antisemitic content during the year.

## **Trafficking in Persons**

See the Department of State’s *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

## **Organ Harvesting**

Organ harvesting is considered a cross-border trafficking-in-persons crime and was the third-most committed trafficking offense after forced labor and sexual exploitation, according to the PSD. The PSD’s Counter Trafficking Unit started tracking social media activity to locate potential perpetrators. There were reports of 10 organ harvesting cases throughout the year.

## **Acts of Violence, Criminalization, and Other Abuses Based on Sexual Orientation, Gender Identity or Expression, or Sex Characteristics**

**Criminalization:** Consensual same-sex sexual conduct among adults is not criminalized. However, authorities arrested LGBTQI+ individuals arbitrarily or on the pretext of violating public order or public decency ordinances. LGBTQI+ citizens faced regular administrative or often arbitrary detentions, harassment including formal and informal interrogation, economic and legal threats, and monitoring from state actors. At least 15 LGBTQI+ persons were arbitrarily arrested or detained this year.



**Violence against LGBTQI+ Persons:** LGBTQI+ persons were frequently targets of violence and abuse, including rape, with little legal recourse against perpetrators. Some LGBTQI+ persons reported they sought police help but instead were harassed, detained, or even returned by police to dangerous family situations of abuse and death threats. LGBTQI+ persons frequently suffered from tribal “honor” codes allowing families wide discretion outside of legal protections to enforce offenses against family honor, including abuse and death threats against LGBTQI+ persons. Transgender individuals were especially vulnerable to acts of violence and sexual assault, and authorities provided them with no legal protection, or kept them in jail “for their own protection.”

Many LGBTQI+ persons feared for their lives or feared other abuse at the hands of family members or authorities. Parents were customarily allowed to request informal “warrants” from security services for children, including adult children, to suspend their movement inside the country, prevent travel abroad, or require authorities to forcibly return them to family custody, even if family members had previously threatened that person’s life. There was little to no official action to investigate, prosecute, and punish those complicit in violence and abuses against LGBTQI+ person by state or nonstate actors.

**Discrimination:** The law does not prohibit discrimination based on sexual orientation, gender identity or expression, or sex characteristics and does not recognize LGBTQI+ individuals, couples, and their families. There is no known mechanism or government action to address complaints about abuse or wrongful imprisonment because of one’s LGBTQI+ identity. During the year, one Jordanian lesbian woman faced forced marriage to a man and abuse from her family and sought resettlement to escape them because she had no legal recourse. LGBTQI+ community leaders reported most LGBTQI+ individuals kept their sexual orientation or gender identity secret due to fear of societal or government discrimination. In years past, some LGBTQI+ individuals tried to kill themselves due to the social and cultural pressures and discrimination faced. LGBTQI+ individuals reported their reluctance to engage the legal system due to fear their sexual orientation or gender identity would provoke hostile reactions from police, disadvantage them in court, or be used to shame them or their families publicly. Some openly LGBTQI+ persons reported instances of death threats, intimidation,

and family pressures to “return to the closet.”

LGBTQI+ persons reported discrimination in housing, employment, education, and access to public services. Individuals have reported being fired from jobs or denied professional opportunities because of their LGBTQI+ identity. Some experienced extortion and threats of being fired, disinherited, disowned, arrested, or prosecuted. Several LGBTQI+ individuals found it impossible to live in the country due to their LGBTQI+ identity and therefore left the country or were in the process of doing so. In cosmopolitan circles, a “don’t ask, don’t tell” policy loosely allowed LGBTQI+ individuals to socialize discreetly. LGBTQI+ individuals who were part of the working class or refugee community were more vulnerable to police harassment and assault with impunity than individuals who belonged to politically connected families or to tribes the authorities were hesitant to harass. Relatively few shelters accepted LGBTQI+ cases, and the facilities and NGOs that served the community lacked sufficient funding and services.

**Availability of Legal Gender Recognition:** There is no legal gender recognition process by which the government allows individuals to change their gender identity marker on legal and identifying documents to bring them into alignment with their self-identified gender identity. The law allows gender “corrective” medical surgery, such as in cases for intersex individuals. The legal availability of this surgery, contingent upon a medical review panel, reflects parents’ decision to “correct” a seeming birth defect and is not available in most cases later in life for transgender individuals.

**Involuntary or Coercive Medical or Psychological Practices Specifically Targeting LGBTQI+ Individuals:** “Conversion therapy” or other efforts to change a person’s sexual orientation or gender identity or expression are not criminalized. There have been reports that “conversion therapy” is practiced in Jordan. LGBTQI+ individuals reported being subject to aggressive hormone, religious, and psychological regimes by their families to “convert” them to be straight. There were no reports of the government condemning such practices.

**Restrictions of Freedom of Expression, Association, or Peaceful Assembly:** Open and public discussion of LGBTQI+ individuals and related topics was controversial due to social and cultural norms. The Media Commission banned

books and blocked websites containing LGBTQI+ content. Government regulations on NGO registration and foreign funding largely prevented activists from organizing themselves within the LGBTQI+ community to defend their human rights or to provide services within their community. Members of the LGBTQI+ community confirmed they generally lacked safe spaces and reported being targeted by the police upon leaving any of the few associated with the community.

## **Persons with Disabilities**

The law generally provides equal rights to persons with disabilities, but authorities did not fully uphold such legal protections. Disabilities covered under the law include physical, sensory, psychological, and mental disabilities. The Higher Council for Affairs of Persons with Disabilities (HCD), a government body, worked with ministries, the private sector, and NGOs to implement strategies to assist persons with disabilities. Citizens and NGOs reported that persons with disabilities faced problems obtaining employment (see section 7.d.) and accessing education, health care, information, communications, buildings, transportation, the judicial system, and other services, particularly in rural areas, on an equal basis with others. Government information and communication on disability concerns was generally provided in accessible formats.

In April, penal code amendments criminalized attempts to commit suicide or express intent to commit suicide, with punishments including imprisonment for a period not exceeding six months and a fine not exceeding 100 dinars (\$141). The United Nations Office of the High Commissioner for Human Rights (OHCHR) criticized the amendment for imperiling mental health and said the change was particularly difficult for persons with mental health disabilities.

The law tasks the Ministry of Public Works' Special Buildings Code Department with enforcing accessibility provisions and oversees retrofitting existing buildings to comply with building codes. Most private and public office buildings continued to have limited or no access for persons with disabilities. Municipal infrastructure, such as public transport, streets, sidewalks, and intersections, was largely not accessible. The HCD continued implementing the 10-year *Strategy on Accessibility*, a plan to make existing buildings and public facilities accessible. In

July, the HCD launched an Accessible Building Award. By October, HCD received over 85 applications from the private, public, and law enforcement sectors. In August, the HCD began a testing phase of a 2020 initiative to provide persons with disabilities identification (ID) cards that will allow digital verification of a person's disability status. The ID cards allow holders to access services and entitlements without physical copies of medical records. Applicants for the ID cards did not incur costs for the medical evaluation prerequisite but were required to pay the government a nominal fee for the card or replacements.

The PSD's national 911 emergency call center provided emergency services for persons with hearing and speech disabilities by using sign language over a video call with specially trained officers on duty. These PSD interpreters were also available for persons to use when interacting with government offices without a representative who could communicate via sign language.

Children with disabilities experienced extreme difficulty in accessing constitutionally protected early and primary education. The NCHR noted school classrooms were not fully accessible and that there was a limited number of qualified teachers for children with disabilities. Children with physical disabilities attended school with peers without disabilities. The NCHR reported that the appointment of qualified teachers was restricted since the activation of the defense law in 2020, imposing a temporary moratorium (still in effect as of year's end) on new appointments and the secondment of personnel in ministries, government departments, and public official institutions and bodies. Families of children with disabilities reported further obstacles from COVID-19 prevention measures.

Between January and June, 26 students dropped out of the Al Amal School for the Deaf in Irbid after parents cited being unable to pay for the students' transportation costs. While the Ministry of Education addressed HCD's concerns regarding maintenance of the school's infrastructure, the government did not solve the transportation barriers impacting the student's access to school and all the students remained absent through the year's end.

Human rights activists and media reported cases of physical and sexual abuse of children and adults with disabilities in institutions, rehabilitation centers, and other care settings. The PSD reported 29 cases of abuses against persons with

disabilities in institutional settings, some of them operated by the government. As of October, the Ministry of Social Development temporarily suspended one privately-run center for violations related to sanitation and infrastructure. The HCD recommended the closure of two other centers for similar reasons and recommended the suspension of 11 centers for violating license requirements. Per HCD's recommendations, the Ministry of Social Development issued a written warning to one center, fined and stopped government support to another, and recommended improvements to 11 centers for violations related to maintenance of infrastructure, hygiene and cleanliness, and the provision of food supplies. The Ministry of Social Development conducted intensive inspections and visits to ensure remedies were in place. In March 2021, the ministry formed a joint investigative committee with the HCD following the death of a man, age 45, at a ministry-run shelter for individuals with intellectual disabilities. The shelter was shut down for three months and beneficiaries were transferred to another facility; the public prosecutor filed lawsuits against at least three of the center's employees. The cases remained pending through the year's end. News websites shared a video reportedly from security cameras at the shelter showing staff apparently mistreating and assaulting shelter residents. Through September this year, the ministry referred seven cases of violence against persons with disabilities to the judiciary.

During the year, HCD's Complaints Division received approximately 150 service requests, divided into complaints, questions to the government, and feedback; around 86 percent of applications were through Facebook and the rest through an online government portal. Most requests were for exemptions on customs and duties, or services and support for employment and education. Most complaints were related to procedural barriers.

## **Other Societal Violence or Discrimination**

HIV and AIDS were largely taboo subjects. Lack of public awareness remained a problem because many citizens believed the disease exclusively affected foreigners and members of the LGBTQI+ community. Society stigmatized individuals with HIV, and those individuals largely concealed their medical status. Individuals with HIV are not eligible for disability pensions. The government continued its efforts to inform the public about the disease and eliminate negative attitudes toward

persons with HIV or AIDS, but it also continued to test all foreigners annually for HIV, as well as for hepatitis B, syphilis, malaria, and tuberculosis. According to NGOs, detention centers placed detainees with HIV in solitary confinement to prevent them from mixing with other detainees. The government deported migrant workers diagnosed with HIV. The Ministry of Health enforced a policy to deny access to antiretroviral drugs for those awaiting deportation. UNHCR did not have recorded cases of deported refugees or asylum seekers due to their HIV status.

## **Section 7. Worker Rights**

### **a. Freedom of Association and the Right to Collective Bargaining**

The law provides for the right of workers to form and join trade unions and conduct legal strikes, but with significant restrictions. While the law does not expressly provide an affirmative right to collective bargaining, the law does provide procedural requirements for collective agreements when both labor and management voluntarily agree. In practice, any union wishing to conclude a collective bargaining agreement with an employer is allowed to do so. The law identifies specific groups of public- and private-sector workers who may organize. It also defines 17 industries and professions in which trade unions may be established and excludes agricultural and domestic workers. Civil servants cannot join unions. The law requires that unions for these 17 statutorily defined trades belong to the government-linked General Federation of Jordanian Trade Unions (GFJTU), the country's sole trade union federation. The establishment of new unions requires at least 50 founding members and approval from the Ministry of Labor. The law authorizes additional professions to form professional associations on a case-by-case basis.

The government subsidized and audited salaries and activities of the General Federation of Jordanian Trade Unions (GFJTU) and monitored union elections. The government denied recognition to independent unions organized outside the structure of the government-approved federation. The government did not meet with these unions, and the lack of legal recognition hampered their ability to collect dues, obtain meeting space, and otherwise address members' workplace concerns. Labor organizations also reported difficulty obtaining government recognition for trade unions in new sectors beyond the 17 sectors established in

law, in part because new unions would require approval by a tripartite committee in which the existing 17 union heads are represented.

The law allows foreign workers to join unions but does not permit them to form unions or hold union office, effectively preventing union formation in enterprises where foreign workers constitute the majority. No new trade union has been established since 1976.

The Labor Code prohibits antiunion discrimination and protects workers from employer retaliation for union affiliation or activities. However, the law does not explicitly provide a right to reinstatement for workers fired due to antiunion views, and observers noted that the labor code did not explicitly protect unionized and nonunionized workers from retaliation. This was particularly the case for foreign workers in all sectors, as well as citizens working as day laborers in the public sector on short-term contracts.

On September 6, the Minister of Agriculture forced an employee into early retirement because he participated in a protest sit-in in front of parliament asking for a salary increase. The terminated employee received his early retirement letter one day after his participation in the protest but had not submitted a request or expressed a desire for early retirement.

When conflicts arise during labor negotiations, the law requires that union representatives and employers first attempt to resolve the matter through informal mediation. If a matter remains unresolved, the union is required to request Ministry of Labor-appointed mediation. Ministry-appointed mediators are assigned to cases for up to 21 days. If initial mediation fails, the case is referred to a higher mediation council composed of an employer representative, a labor representative, and a chair appointed by the minister of labor. If the council's adjudication is unsuccessful, the dispute goes to a labor court with a panel of ministry-appointed judges for 21 days.

There are limits on the ability to strike, including a requirement to provide a minimum of 14 days' notice to the employer. The law prohibits strikes if a labor dispute is under mediation or arbitration. The law prohibits management from arbitrarily dismissing workers engaged in labor activism or arbitration, but

enforcement was inconsistent. Labor organizations reported some management representatives used threats to intimidate striking workers. The Ministry of Labor reported 18 workers' strikes during the year, all of which were unauthorized "wildcat" strikes that took place outside of union leadership. Strikes generally occurred without advance notice or registration.

In April NGO Jordan Labor Watch issued an analysis documenting 225 labor-related protests in 2021, a 55 percent increase over the prior year. The report found nearly a quarter of labor protests challenged existing laws and regulations, whereas about 16 percent were demands to increase wages and benefits. Workers in groups not associated with trade unions made up 40 percent of labor protests, while those in labor unions or its committees made up 33 percent. There were 36 strikes in 2021, according to the NGO.

Some foreign workers whose residency permits are tied to work contracts were vulnerable to retaliation by employers for participating in strikes and sit-ins. Participation in a legally unrecognized strike is counted as an unexcused absence under the law. The law allows employers to consider employment contracts void if a worker is absent more than 10 consecutive days if the employer provides written notice. Labor rights organizations reported instances of refusing to renew foreign workers' contracts due to attempts to organize in the workplace. Migrant workers in the garment sector were allowed to join trade unions but were unable to vote for the union chairpersons, and only Jordanians held leadership positions in unions.

The government did not fully enforce applicable laws related to freedom of association and collective bargaining. Penalties were commensurate with those for similar civil rights violations and were regularly applied against violators if they were charged.

There were no known reports of threats of violence against union heads, although security services arrested labor activists and reportedly pressured union leaders to refrain from activism that challenged government interests. The government dissolves unions perceived as violating the labor law. In December 2020, the Amman Magistrate's Court issued a decision to dissolve the Jordanian Teacher Union and its syndicate council for organizing protests demanding salary increases, sentencing council members to one year (later reduced to three months) of



imprisonment for illegal assembly and inciting hatred; all were released shortly thereafter on bail. On June 26, an Amman appellate court upheld the union's dissolution, but ruled to reinstate the syndicate council through new board elections. Citing noncompliance with reinstating the council, Washington-based NGO DAWN issued a press release November 21, calling for the Ministry of Education to uphold the court's ruling to reinstate the syndicate council. No syndicate council elections have been held through the end of December.

Labor NGOs working to promote the rights of workers generally focused on promoting the rights of migrant workers. Labor NGOs did not face government restrictions in addition to or apart from those discussed in section 2.b.

## **b. Prohibition of Forced or Compulsory Labor**

The law criminalizes forced labor, but there are exceptions in cases related to national emergency, just remuneration, and forced prison labor as a punishment. Penalties for forced labor were commensurate with those for other serious crimes, such as rape and kidnapping, under the amended law on trafficking in persons. Default penalties for forced labor are three to 15 years' imprisonment with at least seven years' imprisonment for child forced labor. The government did not effectively enforce the law.

Law enforcement and judicial officials did not consistently identify victims or open criminal investigations of forced labor (see section 6). The government inspected garment factories, a major employer of foreign labor, and investigated allegations of forced labor. Forced labor or conditions indicative of forced labor also occurred among migrant workers in the domestic and agricultural sectors. Activists highlighted the vulnerability of agricultural workers due to minimal government oversight. Activists also identified the 48,000 domestic workers in the country (as of October), most of whom were foreign workers, as particularly vulnerable to exploitation due to inadequate government oversight, social norms that excused forced labor, and domestic workers' isolation within individual homes. Activists further noted cases where domestic workers who used an employer's telephone to complain to a Ministry of Labor hotline experienced retaliation when the hotline returned the call to their employers.

*Kafala*, the system in which employers sponsor migrant workers' visas, continued to apply. Under kafala, migrant workers cannot change employers or leave the country without permission from their employer, leaving them vulnerable to forced labor conditions. Migrant workers who leave their workplace without their employer's permission forfeit their legal status and risk arrest and deportation. The kafala system enables employers to circumvent established labor laws which ensure a minimum wage, limits on working hours, a weekly rest day, overtime pay, and freedom of association. This system creates vulnerabilities that leave migrant workers at risk of being victims of human trafficking, including forced labor. Women working in domestic positions are at particular risk.

The Ministry of Labor developed an e-platform in 2020 for foreign workers to submit labor-related grievances to the Ministry. During the year, the platform was only available in Arabic and English, and despite reported efforts to expand the service to 10 languages, the two-language limitation was an accessibility barrier for foreign workers that did not speak those languages. The Ministry has received approximately 80,000 complaints since the platform's inception.

The government requires recruitment agencies to provide migrant domestic workers with insurance covering medical care and workplace accidents. The law authorizes the Ministry of Labor to rate recruitment agencies publicly based on compliance with the labor law and to close and withdraw the license of poorly ranked agencies. As of September, the ministry referred six complaints to the Counter Trafficking Unit (CTU) of the PSD. The minister of labor has the authority to close recruitment agencies with many labor violations, based on the recommendation of ministry inspectors. Through September, the ministry shut down one recruitment agency, issued one written warning, and suspended nine agencies for different durations due to lack of compliance with the labor law.

As of July, the Ministry of Labor issued 1,647 verbal and written warnings requiring remedial action in workplaces.

Also see the Department of State's *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

### **c. Prohibition of Child Labor and Minimum Age for Employment**

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings>.

### **d. Discrimination with Respect to Employment and Occupation**

The constitution prohibits discrimination against Jordanians based on race, language, or religion; however, labor law does not explicitly prohibit it in all circumstances. Labor regulations address principles of fairness and equality, but with respect to employment and occupation opportunities, the law does not explicitly prohibit discrimination based on race, national origin, color, sex, ethnicity, age, sexual orientation, gender identity, HIV or AIDS status, or refugee or stateless status. Therefore, there are no penalties to enforce. There are some limited legal protections for maternity leave. The law requires private companies to hire workers with disabilities, forbids employers from firing employees solely because of a disability, and directs employers to make their workplaces accessible to persons with disabilities. Workplaces with more than 50 employees are required to have 4 percent or more of their workforce be persons with disabilities.

According to the Ministry of Labor, agreements were signed with private-sector companies in June 2021 to ensure implementation of the 4 percent requirement and to allow the ministry to conduct inspections. As of August, 641 persons with disabilities had registered on the Ministry of Labor Department for Persons with Disabilities Employment platform, 21 of which got hired through the platform (SAJIL) and 179 through other hiring channels. The ministry, however, lacked the capacity to keep the platform up to date. NGOs and local observers reported persons with disabilities continued to face discrimination in obtaining employment and access to their workplaces. A Ministry of Labor program entitled *Economic Empowerment and Social Participation of Persons with Disabilities*, certified more than 13 instructors and 10 advisors (with disabilities), and trained 122 individuals from civil society organizations, private-sector companies, and the public sector. The ministry shut down the sign language program across the ministry's departments due to lack of funding and could not allocate an independent budget for the Employment of Persons with Disabilities department. The Ministry exempted non-Jordanians with severe disabilities from work permit fees.

Discrimination in employment and occupation also occurred with respect to gender, national origin, and sexual orientation (see section 6). In 2021 the International Labor Organization (ILO) reported Jordanian women held 62 percent of leadership positions in the education sector but just 2.7 percent of leadership positions in the overall economy. World Bank research found the pay gap between Jordanian men and women was 40 percent in the private sector and 28 percent in the public sector.

Working women were largely concentrated in the “socially acceptable” health and education sectors. By law, the Ministry of Labor specifies the industries and economic activities prohibited for women, as well as the hours during which they are allowed to work. Women are prohibited from working in quarries, construction sites, and other hazardous environments, and are not allowed to work between 7:00 p.m. and 6:00 a.m., except in hotels, theaters, restaurants, airports, tourism offices, hospitals, clinics, and some transportation industries. Women are generally barred from working between 10:00 p.m. and 6:00 a.m. Evening work for women is limited to 30 days per year and a maximum of 10 hours per day. These restrictions limit job competition in favor of men. The Civil Service Ordinance allocates benefits such as the family allowance and cost of living allowance at a higher level for men than for women.

The law provides employment protections for pregnant women after their sixth month of pregnancy, and for up to 70 days following the delivery of her child.

The law prohibits discrimination in wages based solely on gender. Union officials reported that sectors predominantly employing women, such as secretarial work and teaching, offered wages below the official minimum wage. The garment sector, which employs predominantly migrant and Jordanian women, has a lower minimum wage than other sectors. Many women reported traditional social pressures discouraged them from pursuing professional careers, especially after marriage. According to the Department of Statistics, as of the second quarter of the year unemployment among women holding a bachelor’s degree was 78.9 percent, compared with 25.5 percent for men. The female unemployment rate was 29.4 percent, compared with a male unemployment rate of 20.7 percent and the overall unemployment rate of 22.6 percent.

The Ministry of Labor restricts certain professions to Jordanian nationals. These professions include office workers, sales professionals, electricians, security guards, hair stylists, and car mechanics.

According to the employment ministry, Egyptians were most of the foreign workers in the country and were subject to kafala, a sponsorship system that requires migrant workers to obtain an employer's permission to leave the country. Jordan exported highly skilled and educated workers while sponsoring unskilled migrants to perform lower-level jobs its citizens avoid. NGOs reported foreign workers, including garment workers, agricultural workers, and domestic workers, were especially vulnerable to gender-based violence, sexual harassment, sexual assault, and verbal and physical assault in the workplace. Lawyers criticized the law on harassment in the workplace, saying it did nothing to hold perpetrators accountable and assisted victims only by allowing them to resign. Domestic workers were unable to participate in social security programs.

Some migrant workers faced discrimination in wages, housing, and working conditions. The informal labor market continued to be the primary sector of employment for refugees. Non-Syrian refugees did not have access to the formal labor market. Syrian refugees were mostly employed in the informal sector due to the administrative challenges of securing "fee-free" work permits, the high annual cost of work permits in areas not covered by the fee-free program, and the limited sectors in which refugees were permitted to work. In addition, NGOs reported that some migrant workers could not officially register their children due to seizure of their documents, which led to the accumulation of fines on children. As a result, parents were unable to return to their home countries with their children.

## **e. Acceptable Conditions of Work**

**Wage and Hour Laws:** The law provides for a national monthly minimum wage, which is above the official individual poverty line.

The law sets a workweek of 48 hours and requires overtime pay for hours worked in excess of that level. Because there was no limit on mutually agreed overtime, the Ministry of Labor reportedly permitted employees in some industries, such as the garment sector, to work as many as 70 to 75 hours per week, and observers

reported many foreign workers requested overtime work. The law permits compulsory overtime under certain circumstances, such as conducting an annual inventory, closing accounts, preparing to sell goods at discounted prices, avoiding loss of goods that would otherwise be exposed to damage, and receiving special deliveries. In such cases actual working hours may not exceed 10 hours per day, the employee must be paid overtime, and the period may not last more than 30 days. NGOs reported some instances of forced overtime.

Employees are entitled to one day off per week. The law provides for 14 days of paid sick leave and 14 days of paid annual leave per year, increasing to 21 days of paid annual leave after five years of service with the same firm. Workers also received additional national and religious holidays designated by the government.

**Occupational Safety and Health:** Occupational safety and health (OSH) standards were appropriate for the main industries in the country, and employers were required to abide by all OSH standards set by the government. The law requires employers to protect workers from hazards caused by the nature of the job or its tools, provide any necessary protective equipment, train workers on hazards and prevention measures, provide first aid as needed, and protect employees from explosions or fires by storing flammable materials appropriately. Responsibility for identifying unsafe situations remains with the Ministry of Labor's occupational safety and health experts. The law provides workers the right to remove themselves from a hazardous workplace without jeopardizing their employment.

Wage, overtime, safety, and other standards often were not upheld. Some foreign workers faced hazardous and exploitative working conditions in a variety of sectors. Authorities did not effectively protect all employees who attempted to remove themselves from situations that endangered their health and safety. Labor organizations reported that female citizen workers were more likely than men to encounter labor abuses, including wages below the minimum wage and harassment in the workplace.

The government requires garment-exporting manufacturers to participate in the Better Work Jordan (BWJ) program, a global initiative by the ILO and the International Finance Corporation to improve labor standards. All factories required by the government to join BWJ were active members of the program.

In the garment sector, foreign workers were more susceptible than citizens to dangerous or unfair conditions. A substantial portion of the standard monthly minimum wage for foreign workers in the garment industry was used to pay employment placement agencies for food, accommodation, and travel for workers from their home countries, according to an international

NGO. <https://gcc02.safelinks.protection.outlook.com/?url=https://betterwork.org/portfolio/mental-health-policy-in-the-workplace/&data=05|01|BazyanLF@state.gov|e7a47fd3c23845b22b7908da9b0ad2c9|66cf50745afe48d1a691a12b2121f44b|01|637992768082791722|Unknown|TWFpbGZsb3d8eyJWIjoiMC4wLjAwMDAiLCJQIjoiV2luMzIiLCJBTiI6IklhaWwiLCJXVCi6Mn0=|3000||&sdata=X0r+Fy89oMOkfl5dnf/ZlhU1jMsQ+j0JxN6bCogJJVw=&reserved=0>

Migrant workers were disproportionately affected by the government's COVID-19 response. Factory workers contracted the virus at higher rates due to poor health and safety standards and overcrowding, particularly those working in factories in Dalil and Aqaba. Migrant workers are excluded from government programs to offset the effects of the pandemic. Through September, the government's online platform to assist foreign and Jordanian workers with their pandemic-related difficulties had received 5,349 complaints about different violations of the labor code.

**Wage, Hour, and OSH Enforcement:** The Ministry of Labor is responsible for enforcement of labor laws, including wage, hour, and OSH standards. Penalties for violations were not commensurate with those for crimes like negligence and were regularly applied against violators.

The government did not effectively enforce minimum wage, overtime, and OSH laws. Garment sector workers reported working in excess of 10 hours per day. Some foreign workers faced hazardous and exploitative working conditions in a variety of sectors. Authorities did not effectively protect all employees who attempted to remove themselves from situations that endangered their health and safety. Labor organizations reported that female citizen workers were more likely than men to encounter labor abuses, including wages below the minimum wage and harassment in the workplace. Employers reportedly subjected some workers in the agricultural sector, most of whom are Egyptians, to exploitative conditions.

According to a domestic NGO, agricultural workers usually received less than the minimum wage. Some employers in the agricultural sector confiscated passports. Egyptian migrant workers were also vulnerable to exploitation in the construction industry, where employers usually paid migrant workers less than the minimum wage and failed to uphold occupational health and safety standards. Through September, the Ministry of Labor conducted 220 inspections in the agricultural sector and issued 15 violations.

Domestic workers often faced unacceptable working conditions, working long hours without holidays or days off during the week and not being paid on time. Female domestic workers were at particular risk of physical, sexual, and psychological abuse. NGOs reported that employers regularly confiscate passports and other documents to restrict freedom of movement and the ability to change employers. While domestic workers could file complaints in person with the Ministry of Labor's Domestic Workers Directorate or the PSD, many domestic workers complained there was no follow-up on their cases. The Counter Trafficking Unit (CTU) operates a 24-hour hotline, with limited translation capabilities. From January through November, the CTU handled 14 cases of forced labor. Labor inspectors did not regularly investigate reports of labor abuses or other abuses of domestic workers in private homes, and inspectors cannot enter a private residence without the owner's permission except with a court order.

Advocates reported that migrant domestic workers who sought government assistance or made allegations against their employers frequently faced counterclaims of absconding or other criminal behavior by the employers. In a report published this year by local news website on violations against domestic workers in Jordan, after a domestic worker did not receive her salary for four years of work, she fled her employer's house. The employer submitted a complaint to the security services on charges of theft, and the worker was administratively arrested and detained at Juwaideh Correction and Rehabilitation Center.

Employees may lodge complaints regarding violations of the law directly with the Ministry of Labor or through organizations such as their union or the NCHR. The NCHR reported receiving 30 complaints related to labor disputes through November. The ministry opened an investigation for each complaint.



Employers could file criminal complaints against domestic workers for absconding with police stations. Most fleeing domestic workers reportedly sought to escape conditions indicative of forced labor or abuse, including unpaid wages and, to a lesser extent, sexual or physical abuse. By law, employers are responsible for renewing foreign employees' residency and work permits, but often failed to do so for domestic employees. NGOs reported authorities administratively detained foreign domestic workers and other migrant workers and did not inform them of their rights or the reasons for their detention. Legal processes for migrant workers take years and translation services are minimal.

**Informal Sector:** The Ministry of Labor did not consistently inspect and monitor all workplaces or apply all the protections of the labor code in the informal sector. Labor organizations stated that many freelancing agricultural workers, domestic workers, cooks, and gardeners, most of whom were foreign workers, were not enrolled for social benefits from the Social Security Corporation because only salaried employees were automatically enrolled, and optional enrollment was limited to citizens. In 2021, the government approved a new law to regulate the informal agricultural sector, preserve workers' rights, protect against discrimination, and provide workers with coverage under the Social Security Law. For the first time, the law also provides agricultural workers the right to file lawsuits and submit complaints to labor inspectors, have access to the courts, and be exempt from work or residency permit fees. Local NGOs said the law fell short of expectations, particularly because it did not address work permits for migrant workers, who make up most of the sector's workforce. Other NGOs criticized the absence of provisions on childcare and equal health insurance for female workers in the informal sector. The law does not require farms with three or fewer workers to enroll employees in social security. Enforcement of a new law requiring farm workers to enroll in social security was delayed following protests by farm owners.